# TERMS OF USE

## Section I: Freo Pay

The Freo mobile application ("**App**") is owned and operated by **MWYN TECH PRIVATE LIMITED** ("**MWYN**"), a company incorporated under the provisions of the Companies Act, 2013, and having its registered office at G-405, 4th Floor – Gamma Block, Sigma Soft Tech Park, Varthur Kodi, Whitefield Post, Bangalore – 560 066. To access or use the App on any compatible device and/or avail our Services, you are required to accept these Terms and Conditions of Use ("**T&Cs"**). By accepting these T&Cs, you signify that you have read, understood and agree to be bound by these T&Cs and any other applicable law, whether or not you are a registered member of the App. As used herein, "**User**" shall mean anyone who uses or accesses the App on any computer, mobile phone, tablet, console or other device (collectively, "**Device**") and/or avails the Services. Your continued use of the App and/or availing of the Services shall constitute your acceptance to the T&Cs, as revised from time to time. If you do not agree with these T&Cs, please do not access and/or use the App or avail such Services. For the purposes of these T&Cs, "**we**", "**our**" and "**us**" shall mean MWYN, and/or third-party service providers engaged by MWYN to render certain Services on the App and '**you**' and '**your**' shall mean a User who meets the eligibility criteria set out below.

## 1. TERMS AND CONDITIONS

1.1. We reserve the right to update or modify these T&Cs at any time. Your access and use of the App following any such change constitutes your agreement to follow and be bound by these T&Cs, as updated or modified. For this reason, we encourage you to review these T&Cs each time you access and use the App and/or avail our Services.

## 2. SERVICES

2.1. We and our affiliates provide certain services to various banks and non-banking financial companies ("**Partner(s)**") for enabling Users to use payment services on both QR code based payments and on online payments using credit facilities offered by our Partners, enabling hassle free shopping experience to the Users for their daily expenses ("**Services**").

2.2. The App is not linked to the User's bank account. Instead of actual money in the bank, we have set up a post-paid limit for each User, which is provided by our Partners, by way of

a Credit Line ("**Freo Pay Limit**"), wherein the User downloads the App, provides basic information and is either rejected or qualified for the Freo Pay Limit. This Freo Pay Limit can be used via scan and pay for transactions with accepting merchants.

2.3. We shall endeavor to provide you the Freo Pay Limit, offering payment services on both QR code based payments and on online payments enabling shopping experience to the Users for their daily expenses. We shall facilitate the execution of the relevant documents and / or agreement in relation to the Freo Pay Limit for each User that shall be ascertained by the Partner (defined hereinbelow) in conjunction with us. We do not decide or ascertain the Freo Pay Limit for the Users.

2.4. The User may avail our Services and make purchases to be paid for at a later point in time. The outstanding amount payable by the User at the end of each month shall be treated as an amount utilized from the Credit Line given to the User by the Partner on the terms and conditions agreed upon between the User and the concerned Partner.

2.5. MWYN is the technology and operating partner to its banking and non-banking financial partners ("**Partner(s)**"). As a service provider, we shall undertake communication, transaction and processing on behalf of our Partners. At no point are we representing ourselves as a lending or financial services company. All terms pertaining to your Freo Pay Limit with the Partner, if any, are set out in the documents and/ or agreement executed by you with such respective Partner.

2.6. We reserve the right without any prior notice to: (a) add new services; (b) modify existing Services; and/or (c) remove portions of the Services, as and when we deem fit and at our sole discretion.

2.7. We reserve the right to charge a convenience fee, or any fee or charge, for facilitating any existing or new Services, as and when we deem fit and at our sole discretion.

2.8. In connection with the Services availed under these T&Cs, you agree to:

2.8.1. allow us (or our third party service providers), on our own or on behalf of our Partners, to send you payment reminders from time-to- time; and

2.8.2. allow us (or our third party service providers), to engage in activities to collect repayment of the availed Freo Pay Limit that you failed to pay the concerned Partners, pursuant to these: (a) T&Cs; and/or (b) terms and conditions of the third party service provider and/or the Partner. These activities may involve, inter alia, contacting either you directly or any other contact details provided by you at the time of creation of Account, submitting your information to a collection agency, or taking legal action.

## 3. ELIGIBILITY

3.1. You represent and warrant that you are competent and eligible to enter into a legally binding agreement and be bound by these T&Cs. You shall not access and use the App or

avail our Services if you are not competent to contract under the applicable laws, rules and regulations.

3.2. For accessing the App and availing Services, you, as a User, further represent that you are an Indian national having tax residency in India. You also represent and assure that you are not a tax resident of any other country.

3.3. We maintain the right to render Services to only those Users who: (a) are competent to enter into legally binding contracts; (b) have made the representations as provided in Clause

3.2 above; and (c) also qualify under the internal policy(ies) for the same determined solely by us from time to time. We shall have the sole right to change, modify, add or remove, in whole or in part, its internal policy(ies), in relation to the provision of the Services at any time without any prior written notice or intimation to the Users. Further, we shall have the right to not entertain any requests in relation to the same, from the Users, towards such Services without assigning any reason.

3.4. We shall have the right to not process a transaction through the App, if we, in our sole discretion determine that such transaction undertaken by a User is not authorized by such User or that the transaction is not genuine or suspicious.

3.5. If you represent a company, partnership firm or sole proprietorship, you shall be eligible to access the App and avail of the features and facilities on its behalf only if you have been duly authorized by way of necessary corporate action, as may be prescribed statutorily and/or under the charter documents of such entity and further, if you have fulfilled such additional eligibility requirements as we may require in connection therewith.

## 4. REGISTRATION

4.1. You have to be registered as a User in order to avail the Freo Pay Limit , and by accepting the terms and conditions at the Partner website, you will be registered as a User with us on the App, and your User account will be created on the App as per the procedure laid down in the authentication process below.

4.2. Any additional T&Cs with respect to the creation and use of the User account, if any, specified on App shall also be applicable to you along with these T&Cs.

4.3. For the purposes of the registration of your account with us, you agree and understand that your personal information, including your phone number will be shared by us with the Partner, in order to evaluate and register your account for availing the Services, and or any other service provided by us, as the case may be.

4.4. You shall ensure that: (a) you furnish all information required for your availing of the Services as required by us from time to time; and (b) all information provided by you is true, correct, accurate and complete. In order to facilitate the smooth availing of the Services,

you hereby agree to ensure that you shall immediately update the data provided by you in the event of any changes thereto.

4.5. Every time you wish to avail a service with a new Partner, you shall be prompted to accept the respective terms and conditions applicable for the relevant Partner(s), as mentioned in Clause 2.4 above. Your acceptance of such new terms shall not mean the creation of a new user account with us. However, the terms accepted by the you for the respective Partner shall be in force in conjunction with these T&Cs. 4.6. You understand and accept that your acceptance of any terms for any products or services, whether with third-parties or other products and Services offered by us, shall not mean that such terms will substitute the provisions and terms contained herein. The various terms accepted by you shall be in force for such duration as specified in the respective terms.

## 5. AUTHENTICATION

5.1. In order for you to register for availing the Services offered herein, you shall have to authenticate your account in the manner prescribed by us, which includes but may not be limited to, entering a one-time password (OTP) issued to you by us. 5.2. Once you are registered as a User with the Partner in order to avail the Credit Line being provided by the Partner, you shall be provided a Freo Pay Limit by the respective Partner. We shall assist the Partner by providing the relevant information to the Partner in order to enable it to complete the required processes. 5.3. Upon the completion of the registration and authentication processes, you may transact using the App. 5.4. You hereby undertake and agree that: (a) any pin or OTP or password or any unique number issued by us in relation to the authentication process shall be used solely by you and shall not be disclosed to any third-party, and (b) you shall take all necessary steps, including deleting or destroying all records of the authentication process, to ensure that any unauthorized disclosure of the same is prevented. 5.5. You agree to immediately notify us of any unauthorized use of your authentication process or any other breach of security. You further acknowledge and agree that you shall be solely liable for any losses, disputes, costs, expenses, fees, charges incurred by you, as well as for any fraudulent transactions undertaken on a Partner website, due to or arising from your failure in complying with the T&Cs or any other reason, and neither us nor any Partner(s) will be liable for any costs, expenses, fees, charges, losses, damages or other liability arising from your failure to comply with the T&Cs or from any unauthorized access to or use of the pin or OTP or password or any such unique number issued by us. 5.6. The User hereby acknowledges that other than the pin or OTP or password or any unique number issued to you by us in relation to any authentication process for a particular service/transaction, we have no obligation or liability to verify the services/transactions entered into, authenticated and/or authorized by you. 5.7. In the event of any dispute between 2 (two) or more parties as to the ownership of a particular OTP or any other form of authentication process, you hereby agree that we will be the sole expert of such dispute, and that our decision (which may include termination or suspension of any User account subject to dispute) shall be final and binding on all parties concerned.

# 6. PAYMENT

6.1. Upon availing of the services from the Partner, you shall be permitted by such relevant Partner to make payments for such services availed by way of a deferred payment basis, or a lump-sum payment, as specified in the terms agreed to by the User. 6.2. You hereby agree and acknowledge that the Freo Pay Limit as well as repayment terms may be varied or modified from time to time by the concerned Partner in consultation with us. 6.3. In case of you availing the Service, you shall be enabled to make the repayment of the Credit Line on a deferred basis, in a lumpsum amount, or in instalments, as offered by the Partner, subject to the Freo Pay Limit specified by the Partner in its respective terms. You hereby consent and agree to making the required payments in consideration of the Services provided, to us, being authorized by the Partners to do so in the manner specified by us at the time. 6.4. In case of you availing the pay later service, you hereby agree to make the repayment directly to the concerned Partner in accordance with the terms agreed upon between you and the Partner. 6.5. After you have completed the authentication process, and avail of any Service, either we or the concerned Partner shall issue a single statement to you with respect to the Services availed from the relevant Partner(s) during a specified period. The statement shall specify the amounts required to be paid, the timelines, and the manner in which the amount is to be paid by you. The statement shall be issued by us on a periodic basis in the form of an e-mail, text message, notification on the App or any other medium. 6.6. You hereby undertake to pay the due amount specified in the statement in accordance with the timelines and the manner specified in the statement. You hereby acknowledge and agree that the date(s) specified in the statement for payment of the statement amount (each a "Due Date") is/ are the date(s) by which the statement amount (or part thereof, as specified in the statement) should be credited to the concerned Partner's bank account as specified in the terms agreed by the User. 6.7. The User agrees that it shall not use any payment method other than the permitted payment methods notified by us or the Partner in the terms agreed, for the purpose of paying the statement amount and/or any other amounts towards services availed that are due and payable by you to either us or the Partner. 6.8. You hereby agree and acknowledge that we shall not be liable under any circumstances whatsoever, and you shall be solely liable under all circumstances, in relation to: 6.8.1. non-delivery and/or delay in receipt of the statement as a result of any default, non-delivery or delay due to any third-party telecom service provider(s) and/or other service provider(s) used by us or the Partner(s); and 6.8.2. any delay caused in payment of the statement amount due to the time taken for settlement and clearing of the statement amount from your bank account to the relevant Partner's bank account.

# 7. USER INFORMATION

7.1. You hereby understand that in order to avail the Services, we will share your phone number with the concerned Partner, along with other information that may be available with us, as required/requested by the Partner. We will use such information along with your

other information to, amongst others, determine whether the required Services can be offered by the Partner to you.

7.2. You hereby agree that the personal information (including the name, address, contact number and other details) provided by you to us, and further shared by us with the Partner at the time of registration, opening of the user account and/ or availing the Services and at all other times for any other service, as may be applicable ("**Personal Information**"), is and shall at all times remain true, accurate, updated and complete. Personal Information shall also include your registered phone number.

7.3. If any Personal Information provided by or on behalf of you is found to be untrue, inaccurate, not current, or complete, we shall be entitled at our sole discretion to suspend or terminate your account and refuse any or all use of ours or the Partner's services, in the present or future, as the case may be. We shall not be liable, in any manner whatsoever, for any costs, expenses, loss or damage incurred by you or any dispute initiated by or against you due to any untrue, inaccurate, non-current or incomplete Personal Information.

7.4. You hereby agree that the Personal Information shall be collected, stored, analyzed and used by us for the purpose of providing you with efficient access of the App, and such other features, products and/or services offered by us, including but not limited to the services offered by us to the Partner. You hereby grant your consent to us to further use and share your Personal Information with our affiliates and/or the Partner and you hereby confirm that you do not have any objection to receiving promotional offers, deals, marketing material, promotional material and any other form of communications from the Partner, us and/or ours or the Partners' affiliates in such form as may be determined by us or the Partner in our sole discretion. In addition, you agree and understand that we will collect, receive and process your personal information in accordance with our Privacy Policy. By accepting the T&Cs, you hereby agree and accept our Privacy Policy which may be updated by us from time to time.

7.5. You hereby agree that your Personal Information may be displayed on our App and/or the Partner website, automatically or otherwise, upon your logging into your account and/or initiating any service. The Personal Information and other information required to provide you with the service which is readily available on the App is viewable solely by you.

7.6. We may request and upon such request, you shall provide, from time to time, additional information/documentation to: (a) ensure your conformity with the requirements in accordance with applicable law; and (b) verify the accuracy and completeness of the information provided by you.

7.7. You further acknowledge and understand that in order to provide the Services to you, we may fetch further information about you from various third parties including our group companies and affiliates.

7.8. Further, we also reserve the right to obtain information in relation to you from any service provider, financial institution and/or governmental agency for the purposes of offering the Services, and you hereby acknowledge and agree that we shall be entitled to share any or all the information so obtained with any third parties as we see fit, to this end.

7.9. We shall ensure that our use and disclosure of your Personal Information shall at all times, be in accordance with applicable laws and our Privacy Policy. In case of any

discrepancy between the terms of these T&Cs and our Privacy Policy in connection with your Personal Information, the terms of our Privacy Policy shall prevail.
7.10. You further acknowledge and understand that in order to provide the Services to you we shall validate your bank account details via the penny drop mechanism. An amount of Rs. 0.01 or above may be credited to your primary bank/upi that is linked to the mobile number shared.

## 8. REPRESENTATIONS, WARRANTIES AND UNDERTAKING

8.1. The information and data contained in the App do not constitute an offer to buy or sell or solicitation of an offer to buy or sell any Services in any jurisdiction other than India. 8.2. All information provided by you to us is accurate, correct and true. 8.3. You acknowledge and agree that we are entitled to remove any/all the information on the App that is in contravention of these T&Cs. 8.4. You hereby authorize us and/or the respective Partner, to make any enquiries with any other finance company/bank/registered credit bureau regarding your credit history with them, in connection with the Services under these T&Cs, as well as any other services that may be provided by us at the time. 8.5. You agree to not engage in any activities pertaining to the Services that are contrary to any applicable law or regulation or the terms of any agreements you may have with us. 8.6. You agree not to: (a) create multiple Accounts or fake Accounts; (b) create Accounts fraudulently; and/or (c) use the App for any unlawful or immoral purpose. 8.7. You understand that we do not provide any warranties for our Services and shall not be made liable for any claims made by you or any third party. In this regard, you undertake to accept and be solely liable for the Services availed by you from us. You further undertake to indemnify and hold harmless us, our affiliates and our respective directors, officers, employees, agents and representatives against all damages suffered or losses incurred by us, arising due to any act, omission or claim initiated by you or any third party in relation to the Services availed by you or in case of breach of these T&Cs or any warranty by you.

## 9. DELAYS IN PROCESSING

9.1. You understand that there might be inadvertent delays while the Services are being rendered to you, including but not limited to, at the time of making a purchase or making payment to the merchant. Please note that any transaction may be cancelled till the time it is confirmed by us.

## 10. COLLECTION OF INFORMATION

10.1. In the course of availing Services, you authorize us, directly or through third parties, to make any inquiries we consider necessary to validate your identity and to collect information about you in accordance with these with our Privacy Policy. This may include asking you for further information that will allow us to reasonably identify you, requiring you to take steps to confirm ownership of your email address or financial instruments, or verifying your information against third party databases or through other sources. You may

also be required to identify documents to help us validate your identity. In the event we are unable to obtain or verify your information, we reserve the right to close, suspend, or limit access to your Account and/or the Services rendered. By availing the Services, you also consent to enable us to validate your identity and to collect information about you in accordance with these T&Cs and our Privacy Policy. 10.2. You also provide your consent to us to use and share the information provided by you in connection with the Services or other services provided by us. You also agree and consent to us assessing the information, based on your usage of the App. 10.3. You will be required to provide such documents as required by us. 10.4. You agree to provide only true, accurate, current and complete information about yourself, and you agree not to misrepresent your identity or your Account information in the course of availing Services. You further agree to keep your Account information up to date and accurate. 10.5. The responsibility of providing correct information, details, including the contact information, amount, the bank account details etc. lies solely with you. We shall not be responsible to verify the accuracy of the information/ details provided by you. In the event of any changes in the details or information provided by you initially, you must inform us of such changes within a reasonable period of time. If any incorrect bank account number is provided by you, any amount may be deposited /credited to the wrong bank account and there is no guarantee of recovery of the same. We will not be responsible for any loss or damage that may be sustained by you on account of such error on your part.

## 11. INTELLECTUAL PROPERTY POLICY

11.1. All of the content on the App, including, without limitation, all of the page headers, images, illustrations, graphics, audio clips, video clips or text, reports generated, trademarks, tradenames ("**App Content"**), constitute our and our licensors' intellectual property. Copyright laws in all applicable jurisdictions protect the App and the App Content. 11.2. You may access the App, avail of the features and facilities and utilize the App Content in connection with the subject matter hereof. You are not entitled to duplicate, distribute, create derivative works of, display, or commercially exploit the App Content, features or facilities, directly or indirectly, without our prior written permission. If you would like to request permission to commercially exploit any particular App Content, you could contact us in the manner provided for herein. 11.3. MWYN and its licensors, if any, are the sole owners of the underlying software and source code associated with the App and all the trademarks, copyright and any other intellectual property rights of any nature in the App.

## 12. USER ACCOUNT, PASSCODE & SECURITY

12.1. You are mandatorily required to set a security passcode on the App once you are approved for the Freo Pay Limit. You are responsible for maintaining the confidentiality of the passcode and your account ("**Account**") and you are also fully responsible for all activities that occur under your passcode or Account. You agree to: (a) immediately notify us of any unauthorized use of your passcode or Account or any other breach of security;

and (b) ensure that you exit from your Account at the end of each session. We cannot and will not be liable for any loss or damage arising from your failure to comply with this Clause 12. 12.2. You hereby acknowledge that the deletion of the App from the Device does not constitute termination of your Account and agree to undertake the process detailed herein in order to complete de-registration. If and when you are desirous of having your name and other details removed from our records, upon receiving your written request to that effect, we shall, subject to requirements under applicable law remove and/delete all such information.

## 13. USE OF APP – FEATURES AND FACILITIES

13.1. Through the App, we assist Users to gain access to pay-later services on both QR code based payments and on online payments linked to the Freo Pay Limit. 13.2. We hereby grant to you a restricted, non-transferable license to download and use the App on a Device, which you own or control, to avail of the functions and features in accordance with these T&Cs. 13.3. Your usage of the App will require you to provide to us certain personal and financial information, which shall be collected and maintained as per the terms laid down in our privacy policy available at https://freo.money/privacy-policy/ ("**Privacy Policy**"). 13.4. We shall not mediate or attempt to get involved in and resolve any disputes or disagreements inter se between you and third party/ies. 13.5. We will use your name as per the records in NSDL as the name in the application. 13.6. We may update the App from time to time in order to, inter alia, increase our efficiency, optimize user interface and add new features and/or facilities. 13.7. We allow our affiliates or third parties to collect certain information when you visit our App through the use of cookies or third-party web beacon to collect this information by those third parties. 13.8. You are required to seek our permission in case you are writing something associated with the App on social media or otherwise. In the event you post any content on your own site or any other third party sites about us without our prior written permission, we may take strict actions against you. 13.9. You may choose to, or we may invite you to submit comments or ideas about the Services rendered under these T&Cs, including without limitation about how to improve the Services. By submitting any such ideas, you agree that your disclosure is gratuitous, unsolicited and without restriction and will not place us or any of our affiliates or subsidiaries, under any fiduciary or other obligation, and that we will be free to use the idea without any additional compensation to you, and/or to disclose the idea on a non-confidential basis or otherwise to anyone. You further acknowledge that, by acceptance of your submission, we do not waive any rights to use similar or related ideas previously known to, or developed by employees, or obtained from sources other than you. 13.10. IN THE EVENT YOU HAVE ANY COMPLAINT AGAINST THE CONTENTS (OR ANY PORTION THEREOF), INCLUDING THAT THE CONTENTS THEREIN ARE INCORRECT OR BREACH THE RIGHTS OF A THIRD PARTY, WE SHALL TAKE ALL COMMERCIALLY REASONABLE MEASURES TO ADDRESS THE SAME. HOWEVER, OUR SOLE OBLIGATION IN THIS REGARD SHALL BE TO REMOVE SUCH CONTENT FROM THE APP; AND THE USER SHALL HAVE NO FURTHER CAUSE OF ACTION AGAINST US.

## 14. SERVICE PROVIDERS

14.1. We may employ third-party service providers and individuals for the following reasons: 14.1.1. To facilitate our Service; 14.1.2. To provide the Service on our behalf; 14.1.3. To perform Service-related services; or 14.1.4. To assist us in analyzing how our Service is used. 14.2. You acknowledge that the third-party service provider/agent/agencies will have access to your personal information on a need basis to assist us in rendering service, and the service providers are restricted from using the same for any other reason. The third-party service providers are obligated not to disclose or use the information for any other purpose.

## 15. YOUR RIGHTS & PREFERENCES AS A DATA SUBJECT IN INDIA

15.1. These T&Cs are intended for Users within the territory of India and govern your rights as per applicable law within the territory of India. However, in the event you fall under a jurisdiction outside the purview of Indian law, we will not be liable for any claim, action and/or right initiated/exercised by you as per the extant laws of that jurisdiction. Therefore, we request you to kindly use the App accordingly.

## 16. CUSTOMER COMMUNICATIONS

16.1. Accepting these T&Cs implies your express consent to be contacted by us, our agents, representatives, affiliates, or anyone calling on our behalf at any contact number, or physical or electronic address provided by you while registering your Account. You further agree to us contacting you in any manner, including without limitation, SMS messages (including text messages), WhatsApp, calls using pre-recorded messages or artificial voice, calls and messages delivered using auto telephone dialing system or an automatic texting system, and notifications sent via the App. Automated messages may be played when the telephone is answered, whether by you or someone else. In the event that an agent or representative calls, he or she may also leave a message on your answering machine, voice mail, or send one via SMS. 16.2. You certify, warrant and represent that the telephone numbers and/or email addresses and any other information that you have provided to us are your own and not someone else's and are true, accurate, current and complete. You represent that you are permitted to receive calls at each of the telephone numbers you have provided to us and emails at each of the email addresses you have provided us. You agree to notify us whenever you stop using a particular telephone number(s) and/or email address(es). 16.3. In relation to the unsolicited communication referred in "National Do Not Call Registry" as laid down by Telecom Regulatory Authority of India, you confirm that such laws will not be applicable for such communication/calls/SMS/messages through whatsapp messenger application received from us, our employees, agents and/or associates.

## 17. SYSTEM REQUIREMENTS

17.1. In order to use the App, you are required to have a compatible Device with the following minimum specifications: Android Operating System version 4.1 (SDK level 16) or higher- or iOS 9.0 or higher.

## 18. USER GUIDELINES

18.1. In consideration of our granting you the rights hereunder, you hereby agree not to use the App for any purpose that is unlawful under any applicable laws and/or in violation of the terms of these T&Cs and our Privacy Policy. You shall not use the App in any manner that could damage, disable, overburden, or impair our server, or any network(s) connected to any server, or interfere with any other party's use and enjoyment of the App. You shall not attempt to gain unauthorized access to any functions and features, other user accounts, computer systems or networks connected to any server, in any manner, including, through hacking, password mining or any other means. You shall not obtain or attempt to obtain any materials or information through any means which is not intentionally made available through the App. 18.2. The App is made available to you for your own personal and non-commercial use alone. You shall not allow third parties to: (a) make and/or distribute copies of the App or any deliverable generated by the App; (b) attempt to copy, reproduce, alter, modify and/or reverse engineer the App; and/or (c) create derivative works of the App. 18.3. You accept that any and all operations emanating from your Device shall be assumed to have been initiated by you. 18.4. You shall not copy, reproduce, distribute, or create derivative works of our content that is available on the App. Also, you shall not reverse engineer or reverse compile our technology that is available on the App, including, without limitation, such Java Applet, as may be associated with the App from time to time. 18.5. You shall request us, to block the Account and change the passcode/password immediately for the Account, if your Device has been lost or stolen. 18.6. You are responsible for any and all activities that occur in your Account. You agree to notify us immediately of any unauthorized use of the Account or any other breach of security. We shall not be liable for any loss to you or your organization owing to negligent actions or a failure on your part to inform us, within a reasonable time, about loss or theft of your Device and/or any unauthorized access in your Account, either with or without your knowledge. 18.7. You shall be liable for losses incurred by us or any other party due to a third party's use of the Account. You shall not use any other person's account at any time, without our permission and the permission of the account holder. 18.8. We shall make all reasonable efforts to ensure that your information is kept confidential. However, we shall not be responsible for any disclosure or leakage of confidential information and/or loss or damage of the Device due to theft, negligence or failure on your part to practice safe computing. 18.9. You shall ensure that while using the functions and features, all prevailing and applicable laws, rules and regulations, shall at all times, be strictly complied with by you and we shall not be liable in any manner whatsoever for default of any nature, by you, regarding the same. 18.10. You understand and acknowledge that upon using the App, you authorize us to access third party sites designated by you, on your behalf, to retrieve such information requested by you, and to register for accounts requested by you. For all purposes hereof, you hereby

grant us limited powers and hereby authorize us with the full power of substitution and re-substitution, for you and in your name, place and stead, in any and all capacities, to access third party internet sites, servers or documents, retrieve information, and use your information, all as described above, and empower us with the full power and authority to do and perform each and every act and thing requisite and necessary to be done in connection with the Services and facilities available on the App, as fully to all intents and purposes as you might or could do in person. YOU ACKNOWLEDGE AND AGREE THAT WHEN WE ACCESS AND RETRIEVE INFORMATION FROM THIRD PARTY SITES, WE ARE ACTING AS YOUR AGENT, AND NOT THE AGENT OR ON BEHALF OF THE THIRD PARTY. You agree that such third parties shall be entitled to rely on the foregoing authorization and agency granted by you. 18.11. You hereby acknowledge and agree that we shall not be liable for failure of any transaction undertaken for any reason whatsoever including but not limited to deficiency of service and/or products delivered as well as technical errors. You further acknowledge that we shall not be responsible in any manner whatsoever, for any loss incurred by you for a failed/ incomplete transaction undertaken by you using our Services. 18.12. You hereby agree and express your voluntary, unequivocal and informed consent to your personal data or financial information (including such data as may be designated as 'personally identifiable data' under the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011 or other applicable law), being processed, disclosed and/or transferred by us to third-party entities.

## 19. INDEMNIFICATION

19.1. You agree to protect, defend and indemnify us and hold us and our representatives harmless from and against any and all claims, damages, costs and expenses, including attorneys' fees, arising from or related to your access and use of the App in violation of these T&Cs and/or your infringement, or infringement by any other user of your Account, of any intellectual property or other right of anyone. 19.2. The terms of this provision will survive any termination or cancellation of these T&Cs or your use of the App.

## 20. REFUND PROCESS:

20.1. Subject to Clauses 21, 22 and 27 below, we will provide a refund to you under the following circumstances: 20.1.1. Should the transaction fail due to any reason, except due to scheduled downtime, or change in applicable laws, i.e., the money is debited from your Freo Pay Limit and not credited to the merchant account (subject to clause 20.1.2 below), your Freo Pay Limit will be increased to the extent of the amount debited in the failed transaction; and 20.1.2. Should the money fail to be credited into the merchant's account within 48 (forty eight) hours, your Freo Pay Limit will be increased to the extent of the amount debited in the failed transaction.

## 21. SUPPORT

21.1. Basic support for the Services shall be provided by us. We shall also use commercially reasonable efforts to make the Services available 24 hours a day, 7 days a week, except for: (a) planned downtime (of which we shall give at least 4 hours' notice); or (b) any unavailability due to circumstances beyond our reasonable control.

## 22. DISCLAIMER

22.1. The App and the functions and features therein, are provided on an "**as is**" and on an "**as available**" basis. We expressly disclaim all warranties of any kind, whether express or implied, including, but not limited to the implied warranties of merchantability, fitness for a particular purpose and non-infringement. 22.2. We shall make reasonable efforts to make available the App and the functions and features at all times. However, we make no warranty that the App shall meet your requirements, be uninterrupted, timely, secure, and/or error free. Further we do not make any warranty as to the results that may be obtained from the use of the functions and features or as to the accuracy, reliability and/or quality of the output derived therefrom. 22.3. We are the mere facilitator of the Services provided to you and the terms of your borrowing shall be governed by the terms agreed by you with the concerned Partner, as mentioned in Clause 4.5 hereinabove. 22.4. We do not make any warranties or guarantee as to the functionality and experience of the App and our Services, as the functionality of the same depend on various factors, including but not limited to the device being used by you, the browser, etc. which is beyond our control. 22.5. You shall ensure that while using the features and facilities of the App, all prevailing and applicable laws, rules and regulations, shall at all times, be strictly complied by you, and we shall not be liable in any manner whatsoever for default of any nature regarding the same, by you. 22.6. We shall not be liable for the loss and/or damage of the confidential information or data of the User arising as a result of an event or a series of related events, that is beyond our control, including failures of or problems with the internet or part of the internet, attempted hacker attacks, hacker attacks, denial of service attacks and/or viruses or other malicious software attacks or infections. 22.7. You are advised to keep your username, password and passcode safe. We shall not be liable in the event your Account is hacked due to errors or omissions at your end. 22.8. Any material downloaded or otherwise obtained through the App is done at your own discretion and risk and you are solely responsible for any damage to your Device or loss of data that results from the download of any such material. No advice or information, whether oral or written, obtained by you from us through or from the service will create any warranty not expressly stated in these T&Cs. 22.9. We shall not be liable for any losses and/or damages which may arise as a result of a third party entity's usage of the user's personal data or financial information (including such data as may be designated as 'personally identifiable data' under the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011). 22.10. We shall not be liable for any failure or delay in performing our obligations under this facility if such failure or delay: (a) results from actions undertaken by us in reasonable good faith to comply with applicable law or to prevent fraud; or (b) is caused by events beyond our control, including but not limited to vandalism, hacking, theft,

phone service disruptions, internet disruptions, loss of data, extreme or severe weather conditions or any other causes in the nature of force majeure event. 22.11. We hereby clarify that we have the full power and authority to remove any feature from the App at any point in time without intimating you of the same.

## 23. LINK TO OTHER WEBSITES

23.1. The links to any third party websites on the App are provided solely as pointers in connection with the Services, and we have no control over the content on such third party websites. We make no warranties concerning the content of such websites, including the accuracy, completeness, reliability of said websites, nor do we warrant that such website or content is free from any claims of copyright, trademark or other infringement of the rights of third parties or that such site or content is devoid of viruses or other contamination. If you choose to follow a link to a third party website, you will do so at your own risk. You also acknowledge that links to third party websites do not imply any endorsement of or responsibility for the opinions, ideas, products, information or Services offered at such sites, or any representation regarding the content at such third party websites.

## 25. LIMITATION OF LIABILITY

25.1. IN NO EVENT SHALL WE BE LIABLE FOR ANY DIRECT, INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES OR FOR ANY DAMAGES WHATSOEVER INCLUDING, WITHOUT LIMITATION, DAMAGES FOR LOSS DUE TO USE, DATA OR PROFITS, ARISING OUT OF OR IN ANY WAY CONNECTED WITH THE ACCESS, USE OR PERFORMANCE OF THIS APP'S FUNCTIONS AND FEATURES OR FOR INTERRUPTIONS, DELAY, ETC., EVEN IF WE WERE ADVISED OF THE POSSIBILITY OF DAMAGES RESULTING FROM THE COST OF GETTING SUBSTITUTE FACILITIES ON THE APP, ANY PRODUCTS, DATA, INFORMATION OR SERVICES PURCHASED OR OBTAINED OR MESSAGES RECEIVED OR TRANSACTIONS ENTERED INTO THROUGH OR FROM THE APP, UNAUTHORIZED ACCESS TO OR ALTERATION OF YOUR TRANSMISSIONS OR DATA STATEMENTS OR CONDUCT OF ANYONE ON THE APP, OR INABILITY TO USE THE APP, THE PROVISION OF OR FAILURE TO PROVIDE THE FUNCTIONS AND FEATURES, WHETHER BASED ON CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY OR OTHERWISE. THIS CLAUSE SHALL SURVIVE IN PERPETUITY.

## 26. SEVERABILITY

26.1. If any provision of these T&Cs is held to be illegal, invalid or unenforceable under any present or future applicable laws: (a) such provision will be replaced with another, which is not prohibited or unenforceable and has, as far as possible, the same legal and commercial effect as that which it replaces; and (b) the remaining provisions of the T&Cs will remain in full force and effect and will not be affected by the illegal, invalid, or unenforceable provision or by its severance here from.

## 27. TERMINATION

27.1. These T&Cs and the right to use granted hereunder shall take effect on the date you create an Account with the App, and shall continue in effect until termination these T&Cs in accordance with this section. 27.2. We may suspend/terminate the use of the App at any time, with or without cause, after giving notice of the suspension/termination to you. 27.3. Upon termination, the rights and license granted to you herein shall terminate and you must cease all use of the App.**28. WAIVER** 28.1. Any failure on our part to require performance of any provision of these T&Cs shall not affect its right to full performance thereof at any time thereafter, and any waiver by us of a breach of any provision hereof shall not constitute a waiver of a similar breach in the future or of any other breach.

## 29. ASSIGNMENT

29.1. You shall not assign or transfer any rights, obligations, or privileges that you have under these T&Cs, without our prior written consent. We reserve the right to assign its rights, obligations or privileges to third parties and you hereby agree to such assignment. Any assignment or transfer in violation of this clause will be deemed null and void.

## 30. INDEPENDENCE FROM PLATFORMS

30.1. The App is independent of any platform on which it is located. The App is not associated, affiliated, sponsored, endorsed or in any way linked to any platform operator, including, without limitation, Apple, Google, or Android (each being an "**Operator**"). 30.2. Your download, installation, access to or use of the App is also bound by the terms and conditions of the Operator. 30.3. You hereby acknowledge that these T&Cs are concluded only between you and MWYN, and not with an Operator, and we, not those Operators, are solely responsible for the App and the content thereof to the extent specified in these T&Cs. 30.4. We are solely responsible for providing any maintenance and support services with respect to the App as required under applicable law. You hereby acknowledge that an Operator has no obligation whatsoever to furnish any maintenance and support services with respect to the App. 30.5. You hereby acknowledge that us, and not the relevant Operator, is responsible for addressing any User claims or any third party claim relating to the App or your possession and/or use of the App, including, but not limited to: (a) any claim that the App fails to conform to any applicable legal or regulatory requirement; and (b) claims arising under consumer protection or similar legislation. 30.6. You hereby agree that, in the event of any third party claim that the App or your possession and use of the infringes that third party's intellectual property rights, we, and not the relevant Operator, will be solely responsible for the investigation, defense, settlement and discharge of any such intellectual property infringement claim; provided such infringement was proved and established without doubt to be caused by us. 30.7. You must comply with any applicable third party terms of agreement when using the (e.g., you must ensure that your use of the is not in violation of your Device agreement or any wireless data service agreement). 30.8. You hereby agree that the relevant Operator, and that Operator's subsidiaries, are third party beneficiaries of these T&Cs, and that, upon your acceptance of these T&Cs, that

Operator will have the right (and will be deemed to have accepted the right) to enforce the T&Cs against you as a third party beneficiary thereof.

## 31. UPDATES

31.1. We reserve the right to update the App, in order to, inter alia, increase efficiency, optimize user interface, and add new facilities from time to time. Update packages will be sent to you on your Device for download and installation. 31.2. You hereby agree to install the updates from time to time and acknowledge that we will only be able to provide Account support if you ensure installation of all updates upon receiving notifications thereof when using the App.

## 32. VALIDITY OF T&Cs

32.1. These T&Cs shall apply when you complete the authentication process and create an Account and shall remain valid and binding on you for so long as you maintain the Account and avail Services.

## 33. SECURITY

33.1. You are prohibited from violating or attempting to violate the security of the App, including, without limitation: 33.1.1. accessing data not intended for you or logging into an account which you are not authorized to access; 33.1.2. attempting to probe, scan or test the vulnerability of a system or network or to breach security or authentication measures without proper authorization; or 33.1.3. interfering with service to any user, host, or network. 33.2. You shall not misuse this App by intentionally introducing viruses, trojans, worms, logic bombs or other materials that are malicious or technologically harmful (together "Viruses"). You will not attempt to gain unauthorized access to the App, or any server, computer or database connected to the App. You will not attack this App via a denial-of-service attack. Further, you shall not interfere with or circumvent any security feature of the App or any feature that restricts or enforces limitations on use of or access to the App, such as probing or scanning the vulnerability of any system, network or breach. 33.3. Should you breach the provisions of this Clause, you will be liable to be prosecuted under the Information Technology Act, 2000 and other applicable statutes. We will immediately report such breach to the relevant law enforcement authorities and will co-operate with such authorities by disclosing your identity to them. In the event of such a breach, your rights to use this App will cease immediately. 33.4. We will not be liable for any loss or damage caused by a denial-of-service attack or Viruses that may infect your computer equipment, computer programs, data or other proprietary material due to your use of this App or to your downloading of any material posted on it. 33.5. You agree to immediately report to us all incidents involving suspected or actual unauthorized access, disclosure, alteration, loss, damage, or destruction of data. 33.6. You shall not interfere with or disrupt (or attempt to interfere with or disrupt) access and enjoyment of the App by other users or any host or network, including, without limitation, creating or transmitting unwanted electronic

communications such as “spam” to other users, overloading, flooding or mail-bombing the App, or scripting the creation of content in such a manner as to interfere with or create an undue burden on the App. 33.7. All actions performed by any person using your account and password shall be deemed to have been committed by you and you shall be liable for the same. We reserve the right to suspend/terminate your account at any time if it is found that you have been sharing the password with any unauthorized user. 33.8. In order to reduce the risk of unauthorized access, a user is logged out from the account and will have to enter his details and login afresh after 3 (three) consecutive incorrect login attempts. In the event of such lockout, you can email the administrator at hello@freopay.com and the account shall be unlocked upon receipt of your email. You can also request for a password reset on our website through the ‘forgot password’ option on our App.

## 34. MONITORING

34.1. All electronic communications and content presented and/or passed to us, including that presented and/or passed from remote access connections, may be monitored, examined, saved, read, transcribed, stored, or retransmitted in the course of daily operations by any duly authorized employee or agent of ours in the exercise of their duties, or by law enforcement authorities who may be assisting us in investigating possible contravention/non-compliance with applicable law. Electronic communications and content may be examined by automated means. Further, we have the right to reject, at our sole discretion, from the App any electronic communications or content deemed not to be in compliance with our corporate policies and procedures.

## 35. GOVERNING LAW AND JURISDICTION

35.1. These T&Cs (and by extension, the Privacy Policy) are governed and construed in accordance with Indian law. By using the App, you hereby irrevocably consent to the exclusive jurisdiction and venue of courts in Bangalore, Karnataka, India, in the event of any disputes arising out of or in relation to your access to and use of the App.

## 36. CONTACT INFORMATION

36.1. If you have any questions or concerns regarding the Terms of service or Privacy Policy, please feel free to contact us at the following email address: hello@freopay.com or at the contact details published on the App.

# Section II: Freo Credit

The website www.moneytap.com and www.freo.money, Freo and MoneyTap mobile application (jointly “**App**”) are owned and operated by **MWYN TECH PRIVATE LIMITED** (“**MWYN**”) a company incorporated under the provisions of the Companies Act, 2013, and having its registered office at G-405, 4th Floor – Gamma Block, Sigma Soft Tech Park,

Varthur Kodi, Whitefield Post, Bangalore 560 066. To access or use the App on any compatible device and avail Services you are required to accept these Terms and Conditions ("**T&Cs**"). By accepting these T&Cs, you signify that you have read, understood and agree to be bound by these T&Cs and any other applicable law, whether or not you are a registered member of the App. As used herein, "**User**" shall mean anyone who uses or accesses the App on any computer, mobile phone, tablet, console or other device (collectively, "**Device**") and/or avails the Services. Your continued use of the App and/or availing of the Services shall be constituted as your acceptance to the T&Cs, as revised from time to time. If you do not agree with these T&Cs, please do not access and use the App or avail such Services. For the purposes of these T&Cs, "**we**", "**our**" and "**us**" shall mean MWYN, and/or third-party service providers engaged by MWYN to render certain Services on the App and '**you**' and '**your**' shall mean a User who meets the eligibility criteria set out below.

# 1. TERMS AND CONDITIONS

- 1.1. We reserve the right to update or modify these T&Cs at any time. Your access and use of the App following any such change constitutes your agreement to follow and be bound by these T&Cs, as updated or modified. For this reason, we encourage you to review these T&Cs each time you access and use the App and/or avail our Services.

# 2. PURPOSE

- 2.1. We are India's first credit line app that offers personal loan and credit card, in partnership with leading banks & NBFCs ("**Partners**"). User can avail personal loans, credit card or credit line by completing the entire application process on the App itself. Further, the User can withdraw from the approved credit limit and repay the EMIs of the loan using the App itself.

# 3. SERVICES

- 3.1. MWYN shall endeavor to find a Partner best suited for your requirements. You understand that you have agreed to avail credit/loan facility with the Partner ("**Credit Facility Agreement**"), in order to enable you to purchase various products/services utilizing the funds made available to you by the Partner. MWYN shall facilitate the execution of the Credit Facility Agreement. While MWYN shall make reasonable efforts to ensure that you find a suitable Partner, MWYN does not guarantee that such Partners shall meet your requirements or expectations.
- 3.2. Partner will determine and approve the credit limit sanctioned to you, details of which shall be available on your Account. Subject to this credit limit, the Partner may, at its sole discretion, allow disbursements, by confirming the disbursal amount and other terms and conditions of the disbursal (as determined by the Partner) as set out on the App and in the Credit Facility Agreement.

- 3.3. MWYN shall provide the following facilities to you ("**Services**"):

  3.3.1. to facilitate the credit facility from the Partner and enable the execution of Credit Facility Agreement with such Partner in this regard;

  3.3.2. to facilitate collection of equated monthly instalment (as determined by the Partner), (either directly or its affiliates or through third party service providers) from you in order to forward it to the Partner in relation to the credit facility you have obtained; and

  3.3.3. to create and maintain your Account in connection with the Services, on the App.
- 3.4. MWYN is the technology and operating partner to its Partner(s). As a service provider, MWYN shall undertake communication, transaction and processing on behalf of its Partners. At no point, MWYN is representing itself as a lending company. All terms pertaining to your credit facility with the Partner is set out in the Credit Facility Agreement.
- 3.5. MWYN reserves the right, without any prior notice to: (i) add new services; (ii) modify existing Services; and/or (iii) remove portions of the Services, as and when it deems fit and at its sole discretion.

## 4. ELIGIBILITY

- 4.1. You represent and warrant that you are competent and eligible to enter into a legally binding agreement and be bound by these T&Cs. You shall not access and use the App or avail our Services if you are not competent to contract under the applicable laws, rules and regulations.
- 4.2. For accessing the App and availing its Services, you, as a User, further represent that you are an Indian national having tax residency in India. You also represent and assure that you are not a tax resident of any other country.
- 4.3. We maintain the right to render Services to only those users who are – a) competent to enter into legally binding contracts, b) have made the representations as provided above, c) and also qualify under the internal policy(ies) for the same determined solely by us from time to time. We shall have the sole right to change, modify, add or remove, in whole or in part, its internal policy(ies), in relation to the provision of the Services at any time without any prior written notice or intimation to the Users. Further, we shall have the right to not entertain any requests in relation to the same, from the Users towards such Services without assigning any reason.
- 4.4. We shall have the right to not process a transaction through the App, if MWYN in its sole discretion determines that such transaction undertaken by a User is not authorized by such User or that the transaction is not genuine or suspicious.
- 4.5. If you represent a company, partnership firm or sole proprietorship, you shall be eligible to access the App and avail of the features and facilities on its behalf only if you have been duly authorized by way of necessary corporate action, as may be prescribed statutorily and/or under the charter documents of such entity and further, if you have

fulfilled such additional eligibility requirements as MWYN may require in connection therewith.

## 5. REPRESENTATIONS, WARRANTIES AND UNDERTAKING

- 5.1. The information and data contained in the App do not constitute an offer to buy or sell or solicitation of an offer to buy or sell any Services in any jurisdiction other than India.
- 5.2. All information provided by you to MWYN is accurate, correct and true.
- 5.3. You acknowledge and agree that MWYN is entitled to remove any/all the information on the App that is in contravention of these T&Cs.
- 5.4. You hereby authorize MWYN, to make any enquiries with any other finance company/bank/registered credit bureau regarding your credit history with them, in connection with the Services under these T&Cs.
- 5.5. You agree to not engage in any activities pertaining to the Services that are contrary to any applicable law or regulation or the terms of any agreements you may have with MWYN and/or the Partner.
- 5.6. You agree not to (i) create multiple Accounts or fake Accounts; (ii) create Accounts fraudulently; and/or (iii) use the App for any unlawful or immoral purpose.
- 5.7. You understand that MWYN does not provide any warranties for its Services and shall not be made liable for any claims made by you or any third party. In this regard, you undertake to accept and be solely liable for the Services availed by you from MWYN. You further undertake to indemnify and hold harmless MWYN, its affiliates and their respective directors, officers, employees, agents and representatives against all damages suffered or losses incurred by MWYN arising due to any act, omission or claim initiated by you or any third party in relation to the Services availed by you or in case of breach of these T&Cs or any warranty by you.

## 6. DELAYS IN PROCESSING

- 6.1. You understand that there might be inadvertent delays while the Services are being rendered to you, including but not limited to, at the time of making a purchase or making payment to the merchant. Please note that any transaction may be cancelled till the time it is confirmed by MWYN.

## 7. COLLECTION

- 7.1. You agree to:

  7.1.1. allow MWYN (or its third party service providers), on behalf of the Partner, to send you payment reminders from time-to- time;

  7.1.2. allow MWYN (or its third party service providers), on behalf of the Partner, to engage in collection efforts to recover amounts that you failed to pay to MWYN or the Partners, pursuant to these (i) T&Cs; and/or (ii) terms and conditions of the Partner. These

collection efforts may involve, inter alia, contacting either you directly or any other contact details provided by you at the time of creation of Account, submitting your information to a collection agency, or taking legal action.

## 8. COLLECTION OF INFORMATION

- 8.1. In the course of availing Services, you authorize MWYN, directly or through third parties, to make any inquiries we consider necessary to validate your identity and to collect information about you in accordance with these T&Cs and with our Privacy Policy. This may include asking you for further information that will allow us to reasonably identify you, requiring you to take steps to confirm ownership of your email address or financial instruments, or verifying your information against third party databases or through other sources. You may also be required to provide documents to help us validate your identity. In the event MWYN is unable to obtain or verify your information, MWYN reserves the right to close, suspend, or limit access to your Account and/or the Services rendered. By availing the Services, you also consent to enable MWYN to validate your identity and to collect information about you in accordance with these T&Cs and our Privacy Policy.
- 8.2. You also provide your consent to MWYN to use and share the information provided by you in connection with the Services. You also agree and consent to MWYN to assess the information, based on your usage of the App.
- 8.3. You will be required to provide such documents as required by us.
- 8.4. You agree to provide only true, accurate, current and complete information about yourself, and you agree not to misrepresent your identity or your account information in the course of availing Services. You further agree to keep your Account information up to date and accurate.
- 8.5. The responsibility of providing correct information, details, including the contact information, amount, the bank account details etc. lies solely with you. MWYN shall not be responsible to verify the accuracy of the information/ details provided by you. In the event of any changes in the details or information provided by you initially, you must inform MWYN of such changes within a reasonable period of time. If any incorrect bank account number is provided by you, any amount may be deposited /credited to the wrong bank account and there is no guarantee of recovery of the same. MWYN will not be responsible for any loss or damage that may be sustained by you on account of such error on your part.
- 8.6 You further acknowledge and understand that in order to provide the Services to you we shall validate your bank account details via the penny drop mechanism. An amount of Rs. 0.01 or above may be credited to your primary bank/upi that is linked to the mobile number shared.

## 9. INTELLECTUAL PROPERTY POLICY

- 9.1. All of the content on the App, including, without limitation, all of the page headers, images, illustrations, graphics, audio clips, video clips or text, reports generated, trademarks, tradenames ("**App Content**"), constitute our and our licensors' intellectual property. Copyright laws in all applicable jurisdictions protect the App and the App Content.
- 9.2. You may access the App, avail of the features and facilities and utilize the App Content in connection with the subject matter thereof. You are not entitled to duplicate, distribute, create derivative works of, display, or commercially exploit the App Content, features or facilities, directly or indirectly, without our prior written permission. If you would like to request permission to commercially exploit any particular App Content, you could contact us in the manner provided for herein.
- 9.3. MWYN and its licensors, if any, are the sole owners of the underlying software and source code associated with the App and all the trademarks, copyright and any other intellectual property rights of any nature in the App.

## 10. USER ACCOUNT, PASSCODE & SECURITY

- 10.1. You have an option to set a security passcode on the App once you are approved for a credit limit. You are responsible for maintaining the confidentiality of the passcode and your account ("**Account**") and you are also fully responsible for all activities that occur under your passcode or Account. You agree to: (a) immediately notify us of any unauthorized use of your passcode or Account or any other breach of security; and (b) ensure that you exit from your Account at the end of each session. We cannot and will not be liable for any loss or damage arising from your failure to comply with this Clause 10.
- 10.2. You hereby acknowledge that the deletion of the App from the Device does not constitute termination of your Account and agree to undertake the process detailed herein in order to complete de-registration. If and when you are desirous of having your name and other details removed from the records of MWYN, upon receiving your written request to that effect, MWYN shall subject to requirements under applicable law remove and/delete all such information.

## 11. USE OF APP – FEATURES AND FACILITIES

- 11.1. Through the App, MWYN assists Users to gain access to certain credit schemes from its banking and financial partners.
- 11.2. MWYN hereby grants to you a restricted, non-transferable, license to download and use the App on a Device, which you own or control, to avail of the functions and features in accordance with these T&Cs.
- 11.3. Your usage of the App will require you to provide to us certain personal and financial information, which shall be collected and maintained as per the terms laid down in our privacy policy available at Privacy Policy (https://freo.money/privacy-policy/)

- 11.4. We shall not mediate or attempt to get involved in and resolve any disputes or disagreements inter se between you and third party/ies.
- 11.5. We will use your name as per the records in NSDL as the name in the application.
- 11.6. MWYN may update the App from time to time in order to, inter alia, increase its efficiency, optimize user interface and add new features and/or facilities.
- 11.7. We allow our affiliates or third parties to collect certain information when you visit our App through the use of cookies or third-party web beacon.
- 11.8. You are required to seek MWYN's permission in case you are writing something associated with the App on social media or otherwise. In the event you post any content on your own site or any other third party sites about us without our prior written permission, we may take strict actions against you.
- 11.9. You may choose to, or we may invite you to submit comments or ideas about the Services rendered under these T&Cs, including without limitation about how to improve the Services. By submitting any such ideas, you agree that your disclosure is gratuitous, unsolicited and without restriction and will not place MWYN or any of its affiliates or subsidiaries, under any fiduciary or other obligation, and that MWYN will be free to use the idea without any additional compensation to you, and/or to disclose the idea on a non-confidential basis or otherwise to anyone. You further acknowledge that, by acceptance of your submission, MWYN does not waive any rights to use similar or related ideas previously known to, or developed by employees, or obtained from sources other than you.
- 11.10. IN THE EVENT YOU HAVE ANY COMPLAINT AGAINST THE CONTENTS (OR ANY PORTION THEREOF), INCLUDING THAT THE CONTENTS THEREIN ARE INCORRECT OR BREACH THE RIGHTS OF A THIRD PARTY, MWYN SHALL TAKE ALL COMMERCIALLY REASONABLE MEASURES TO ADDRESS THE SAME. HOWEVER, MWYN'S SOLE OBLIGATION IN THIS REGARD SHALL BE TO REMOVE SUCH CONTENT FROM THE APP; AND THE USER SHALL HAVE NO FURTHER CAUSE OF ACTION AGAINST MWYN.

## 12. SERVICE PROVIDERS

- 12.1. We may employ third-party service providers and individuals due to the following reasons:

  12.1.1. To facilitate our Service;

  12.1.2. To provide the Service on our behalf;

  12.1.3. To perform Service-related services; or

  12.1.4. To assist us in analyzing how our Service is used.

- 12.2. You acknowledge that the third-party service provider/agent/agencies will have access to your personal information on a need basis to assist us in rendering Service,

and the service providers are restricted from using the same for any other reason. The third-party service providers are obligated not to disclose or use the information for any other purpose.

## 13. YOUR RIGHTS & PREFERENCES AS A DATA SUBJECT IN INDIA

- 13.1. These T&Cs are intended for Users within the territory of India and govern your rights as per applicable law within the territory of India. However, in the event you fall under a jurisdiction outside the purview of Indian law, we will not be liable for any claim, action and/or right initiated/exercised by you as per the extant laws of that jurisdiction. Therefore, we request you to kindly use the App accordingly.

## 14. CUSTOMER COMMUNICATIONS

- 14.1. Accepting these T&Cs implies your express consent to be contacted by us, our agents, representatives, affiliates, or anyone calling on our behalf at any contact number, or physical or electronic address provided by you while registering your Account. You further agree to us contacting you in any manner, including without limitation, SMS messages (including text messages), WhatsApp, calls using pre-recorded messages or artificial voice, calls and messages delivered using auto telephone dialing system or an automatic texting system, and notifications sent via the App. Automated messages may be played when the telephone is answered, whether by you or someone else. In the event that an agent or representative calls, he or she may also leave a message on your answering machine, voice mail, or send one via SMS.
- 14.2. You certify, warrant and represent that the telephone numbers and/or email addresses and any other information that you have provided to us are your own and not someone else's and are true, accurate, current and complete. You represent that you are permitted to receive calls at each of the telephone numbers you have provided to us and emails at each of the email addresses you have provided us. You agree to notify us whenever you stop using a particular telephone number(s) and/or email address(es).
- 14.3. In relation to the unsolicited communication referred in "National Do Not Call Registry" as laid down by Telecom Regulatory Authority of India, you confirm that laws will not be applicable for such communication/calls/SMS/messages through whatsapp messenger application received from MWYN, its employees, agents and/or associates.

## 15. SYSTEM REQUIREMENTS

- 15.1. In order to use the App, you are required to have a compatible Device with the following minimum specifications: Android Operating System version 4.1 (SDK level 16) or higher or iOS 9.0 or higher.

## 16. USER GUIDELINES

- 16.1. In consideration of MWYN granting you the rights hereunder, you hereby agree not to use the App for any purpose that is unlawful under any applicable laws and/or in violation of the terms of these T&Cs and our Privacy Policy. You shall not use the App in any manner that could damage, disable, overburden, or impair our server, or any network(s) connected to any server, or interfere with any other party's use and enjoyment of the App. You shall not attempt to gain unauthorized access to any functions and features, other user accounts, computer systems or networks connected to any server, in any manner, including, through hacking, password mining or any other means. You shall not obtain or attempt to obtain any materials or information through any means which is not intentionally made available through the App.
- 16.2. The App is made available to you for your own personal and non-commercial use alone. You shall not allow third parties to: (i) make and/or distribute copies of the App or any deliverable generated by the App; (ii) attempt to copy, reproduce, alter, modify and/or reverse engineer the App; and/or (iii) create derivative works of the App.
- 16.3. You accept that any and all operations emanating from your Device shall be assumed to have been initiated by you.
- 16.4. You shall not copy, reproduce, distribute, or create derivative works of our content that is available on the App. Also, you shall not reverse engineer or reverse compile our technology that is available on the App, including, without limitation, such Java Applet, as may be associated with the App from time to time.
- 16.5. You shall request MWYN, to block the Account and change the passcode/password immediately for the Account, if your Device has been lost or stolen.
- 16.6. You are responsible for any and all activities that occur in your Account. You agree to notify MWYN immediately of any unauthorized use of the Account or any other breach of security. MWYN shall not be liable for any loss to you or your organization owing to negligent actions or a failure on your part to inform MWYN, within a reasonable time, about loss or theft of your Device and/or any unauthorized access in your Account, either with or without your knowledge.
- 16.7. You shall be liable for losses incurred by MWYN or any other party due to a third party's use of the Account. You shall not use any other person's account at any time, without the permission of the account holder and MWYN.
- 16.8. MWYN shall make all reasonable efforts to ensure that your information is kept confidential. However, MWYN shall not be responsible for any disclosure or leakage of confidential information and/or loss or damage of the Device due to theft, negligence or failure on your part to practice safe computing.
- 16.9. You shall ensure that while using the functions and features, all prevailing and applicable laws, rules and regulations, shall at all times, be strictly complied with by you and MWYN shall not be liable in any manner whatsoever for default of any nature, by you, regarding the same.
- 16.10. You understand and acknowledge that upon using the App, you authorize us to access third party sites designated by you, on your behalf, to retrieve such information requested by you, and to register for accounts requested by you. For all purposes hereof, you hereby grant us a limited powers and hereby authorize us with the full power of

substitution and re-substitution, for you and in your name, place and stead, in any and all capacities, to access third party internet sites, servers or documents, retrieve information, and use your information, all as described above, with the full power and authority to do and perform each and every act and thing requisite and necessary to be done in connection with Services and facilities available on the App, as fully to all intents and purposes as you might or could do in person. YOU ACKNOWLEDGE AND AGREE THAT WHEN WE ACCESS AND RETRIEVE INFORMATION FROM THIRD PARTY SITES, WE ARE ACTING AS YOUR AGENT, AND NOT THE AGENT OR ON BEHALF OF THE THIRD PARTY. You agree that such third parties shall be entitled to rely on the foregoing authorization, agency granted by you.

- 16.11. You must notify your bank immediately in the event your credit card is lost, stolen, not received, swallowed at an ATM, or is being misused without your permission. Please refer the detailed instructions received from your bank for additional precautions to be taken in case of loss/ theft/ misuse of your credit card.
- 16.12. You hereby acknowledge and agree that MWYN shall not be liable for failure of any transaction undertaken for any reason whatsoever including but not limited to deficiency of service and/or products delivered as well as technical errors. You further acknowledge that MWYN shall not be responsible in any manner whatsoever, for any loss incurred by you for a failed/ incomplete transaction undertaken by you using our Services.
- 16.13. You hereby agree and express your voluntary, unequivocal and informed consent to your personal data or financial information (including such data as may be designated as 'personally identifiable data' under the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011 or other applicable law), being processed, disclosed and/or transferred by MWYN to third-party entities.

## 17. INDEMNIFICATION

- 17.1. You agree to protect, defend and indemnify us and hold us and our representatives harmless from and against any and all claims, damages, costs and expenses, including attorneys' fees, arising from or related to your access and use of the App in violation of these T&Cs and/or your infringement, or infringement by any other user of your Account, of any intellectual property or other right of anyone.
- 17.2. The terms of this provision will survive any termination or cancellation of these T&Cs or your use of the App.

## 18. SUPPORT

- 18.1. Basic support for the Services shall be provided by MWYN. MWYN shall also use commercially reasonable efforts to make the Services available 24 hours a day, 7 days a week, except for (i) planned downtime (of which MWYN shall give at least 4 hours'

notice); or (ii) any unavailability due to circumstances beyond MWYN's reasonable control.

## 19. WARRANTIES:

- 19.1. The App and the functions and features therein are provided on an "**as is**" and on an "**as available**" basis. We expressly disclaim all warranties of any kind, whether express or implied, including, but not limited to the implied warranties of merchantability, fitness for a particular purpose and non-infringement.
- 19.2. We shall make reasonable efforts to make available the App and the functions and features at all times. However, we make no warranty that the App shall meet your requirements, be uninterrupted, timely, secure, and/or error free. Further we do not make any warranty as to the results that may be obtained from the use of the functions and features or as to the accuracy, reliability and/or quality of the output derived therefrom.
- 19.3. We shall not be liable for the loss and/or damage of the confidential information or data of the User arising as a result of an event or a series of related events, that is beyond the control of MWYN, including failures of or problems with the internet or part of the internet, attempted hacker attacks, hacker attacks, denial of service attacks and/or viruses or other malicious software attacks or infections.
- 19.4. You are advised to keep your username, password and passcode safe. We shall not be liable in the event your Account is hacked due to errors or omissions at your end.
- 19.5. Any material downloaded or otherwise obtained through the App is done at your own discretion and risk and you are solely responsible for any damage to your Device or loss of data that results from the download of any such material. No advice or information, whether oral or written, obtained by you from us through or from the Service will create any warranty not expressly stated in these T&Cs.
- 19.6. We shall not be liable for any losses and/or damages which may arise as a result of a third party entity's usage of the User's personal data or financial information (including such data as may be designated as 'personally identifiable data' under the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011).
- 19.7. MWYN shall not be liable for any failure or delay in performing its obligations under this facility if such failure or delay (i) is directly caused by the Partner(s) acts or omission; (ii) results from actions undertaken by MWYN in a reasonable good faith to comply with applicable law or to prevent fraud; or (iii) is caused by events beyond MWYN'S control, including but not limited to vandalism, hacking, theft, phone service disruptions, internet disruptions, loss of data, extreme or severe weather conditions or any other causes in the nature of force majeure event.

## 20. LINK TO OTHER WEBSITES

- 20.1. The links to any third party websites on the App are provided solely as pointers in connection with the Services, and MWYN has no control over the content on such third

party websites. MWYN makes no warranties concerning the content of such websites, including the accuracy, completeness, reliability of said websites, nor does MWYN warrant that such website or content is free from any claims of copyright, trademark or other infringement of the rights of third parties or that such site or content is devoid of viruses or other contamination. If you choose to follow a link to a third party website, you will do so at your own risk. You also acknowledge that links to third party websites do not imply any endorsement of or responsibility for the opinions, ideas, products, information or Services offered at such sites, or any representation regarding the content at such third party websites.

## 21. CLOSURE OF ACCOUNTS

- 21.1. In the event you do not log in to the App or use the Services for two (2) or more years, MWYN may close your Account. However, MWYN will retain your information in accordance with these T&Cs and our Privacy Policy.

## 22. LIMITATION OF LIABILITY

- 22.1. IN NO EVENT SHALL WE BE LIABLE FOR ANY DIRECT, INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES OR FOR ANY DAMAGES WHATSOEVER INCLUDING, WITHOUT LIMITATION, DAMAGES FOR LOSS DUE TO USE, DATA OR PROFITS, ARISING OUT OF OR IN ANY WAY CONNECTED WITH THE ACCESS, USE OR PERFORMANCE OF THIS APP'S FUNCTIONS AND FEATURES OR FOR INTERRUPTIONS, DELAY, ETC., EVEN IF WE WERE ADVISED OF THE POSSIBILITY OF DAMAGES RESULTING FROM THE COST OF GETTING SUBSTITUTE FACILITIES ON THE APP, ANY PRODUCTS, DATA, INFORMATION OR SERVICES PURCHASED OR OBTAINED OR MESSAGES RECEIVED OR TRANSACTIONS ENTERED INTO THROUGH OR FROM THE APP, UNAUTHORIZED ACCESS TO OR ALTERATION OF YOUR TRANSMISSIONS OR DATA STATEMENTS OR CONDUCT OF ANYONE ON THE APP, OR INABILITY TO USE THE APP, THE PROVISION OF OR FAILURE TO PROVIDE THE FUNCTIONS AND FEATURES, WHETHER BASED ON CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY OR OTHERWISE. THIS CLAUSE SHALL SURVIVE IN PERPETUITY

## 23. SEVERABILITY

- 23.1. If any provision of these T&Cs is held to be illegal, invalid or unenforceable under any present or future applicable laws: (a) such provision will be replaced with another, which is not prohibited or unenforceable and has, as far as possible, the same legal and commercial effect as that which it replaces; and (b) the remaining provisions of the T&Cs will remain in full force and effect and will not be affected by the illegal, invalid, or unenforceable provision or by its severance here from.

## 24. TERMINATION

- 24.1. These T&Cs and the right to use granted hereunder shall take effect on the date you create an Account with the App, and shall continue in effect until termination these T&Cs in accordance with this section.
- 24.2. We may suspend/terminate the use of the App at any time, with or without cause, after giving notice of the suspension/termination to you.
- 24.3. Upon termination, the rights and license granted to you herein shall terminate and you must cease all use of the App.

## 25. WAIVER

- 25.1. Any failure on the part of MWYN to require performance of any provision of these T&Cs shall not affect its right to full performance thereof at any time thereafter, and any waiver by MWYN of a breach of any provision hereof shall not constitute a waiver of a similar breach in the future or of any other breach.

## 26. ASSIGNMENT

- 26.1. You shall not assign or transfer any rights, obligations, or privileges that you have under these T&Cs, without the prior written consent of MWYN. MWYN reserves the right to assign its rights, obligations or privileges to third parties and you hereby agree to such assignment. Any assignment or transfer in violation of this clause will be deemed null and void.

## 27. INDEPENDENCE FROM PLATFORMS

- 27.1. The App is independent of any platform on which it is located. The App is not associated, affiliated, sponsored, endorsed or in any way linked to any platform operator, including, without limitation, Apple, Google, Android or (each being an "**Operator**").
- 27.2. Your download, installation, access to or use of the App is also bound by the terms and conditions of the Operator.
- 27.3. You and MWYN acknowledge that these T&Cs are concluded only between you and MWYN, and not with an Operator, and MWYN, not those Operators, are solely responsible for the App and the content thereof to the extent specified in these T&Cs.
- 27.4. MWYN is solely responsible for providing any maintenance and support Services with respect to the App as required under applicable law. You and MWYN acknowledge that an Operator has no obligation whatsoever to furnish any maintenance and support Services with respect to the App.
- 27.5. You and MWYN acknowledge that MWYN, not the relevant Operator, is responsible for addressing any User claims or any third party claim relating to the App or your possession and/or use of the App, including, but not limited to: (i) any claim that the App fails to conform to any applicable legal or regulatory requirement; and (ii) claims arising under consumer protection or similar legislation.
- 27.6. You and MWYN agree that, in the event of any third party claim that the App or your possession and use of the App infringes that third party's intellectual property rights,

MWYN and not the relevant Operator, will be solely responsible for the investigation, defense, settlement and discharge of any such intellectual property infringement claim; provided such infringement was caused by MWYN.

- 27.7. You must comply with any applicable third party terms of agreement when using the App (e.g. you must ensure that your use of the App is not in violation of your Device agreement or any wireless data service agreement).
- 27.8. You and MWYN agree that the relevant Operator, and that Operator's subsidiaries, are third party beneficiaries of these T&Cs, and that, upon your acceptance of these T&Cs, that Operator will have the right (and will be deemed to have accepted the right) to enforce these T&Cs against you as a third party beneficiary thereof.

## 28. UPDATES

- 28.1. MWYN reserves the right to update the App, in order to, inter alia, increase efficiency, optimize user interface, and add new facilities from time to time. Update packages will be sent to you on your Device for download and installation.
- 28.2. You hereby agree to install the updates from time to time and acknowledge that MWYN will only be able to provide Account support for the App if you ensure installation of all updates upon receiving notifications thereof when using the App.

## 29. VALIDITY OF T&Cs

- 29.1. These T&Cs shall apply when you complete the authentication process and create an Account and shall remain valid and binding on you for so long as you maintain the Account and avail Services.

## 30. SECURITY:

- 30.1. You are prohibited from violating or attempting to violate the security of the App, including, without limitation:

  30.1.1. 30.1.1. accessing data not intended for you or logging into an account which you are not authorized to access;

  30.1.2. 30.1.2. attempting to probe, scan or test the vulnerability of a system or network or to breach security or authentication measures without proper authorization; or

  30.1.3. 30.1.3. interfering with Service to any User, host, or network.
- 30.2. You shall not misuse this App by intentionally introducing viruses, trojans, worms, logic bombs or other materials that are malicious or technologically harmful (together "Viruses "). You will not attempt to gain unauthorized access to the App, or any server, computer or database connected to the App. You will not attack this App via a denial-of-service attack. Further, you shall not interfere with or circumvent any security feature

of the App or any feature that restricts or enforces limitations on use of or access to the App, such as probing or scanning the vulnerability of any system, network or breach.

- 30.3. Should you breach the provisions of this Clause, you will be liable to be prosecuted under the Information Technology Act, 2000 and other applicable statutes. We will immediately report such breach to the relevant law enforcement authorities and will co-operate with such authorities by disclosing your identity to them. In the event of such a breach, your rights to use this App will cease immediately.
- 30.4. We will not be liable for any loss or damage caused by a denial-of-service attack or Viruses that may infect your computer equipment, computer programs, data or other proprietary material due to your use of this App or to your downloading of any material posted on it.
- 30.5. You agree to immediately report to us all incidents involving suspected or actual unauthorized access, disclosure, alteration, loss, damage, or destruction of data.
- 30.6. You shall not interfere with or disrupt (or attempt to interfere with or disrupt) access and enjoyment of the App by other users or any host or network, including, without limitation, creating or transmitting unwanted electronic communications such as “spam” to other users, overloading, flooding or mail-bombing the App, or scripting the creation of content in such a manner as to interfere with or create an undue burden on the App.
- 30.7. All actions performed by any person using your account and password shall be deemed to have been committed by you and you shall be liable for the same. We reserve the right to suspend/terminate your Account at any time if it is found that you have been sharing the password with any unauthorized user.
- 30.8. In order to reduce the risk of unauthorized access, a user is logged out from the account and will have to enter his details and login afresh, after 3 (three) consecutive incorrect login attempts.

## 31. MONITORING

- 31.1. All electronic communications and content presented and/or passed to us, including that presented and/or passed from remote access connections, may be monitored, examined, saved, read, transcribed, stored, or retransmitted in the course of daily operations by any duly authorized employee or agent of ours in the exercise of their duties, or by law enforcement authorities who may be assisting us in investigating possible contravention/non-compliance with applicable law. Electronic communications and content may be examined by automated means. Further, we have the right to reject, at our sole discretion, from the App any electronic communications or content deemed not to be in compliance with the corporate policies and procedures of MWYN.

## 32. GOVERNING LAW AND JURISDICTION

- 32.1. These T&Cs (and by extension, the Privacy Policy) are governed and construed in accordance with Indian law. By using the App, you hereby irrevocably consent to the exclusive jurisdiction and venue of courts in Bangalore, Karnataka, India, in the event of any disputes arising out of or in relation to your access to and use of the App.

## 33. CONTACT INFORMATION

- 33.1. If you have any questions or concerns regarding the T&Cs or Privacy Policy, please feel free to contact us at the following email address: hello@moneytap.com or at the contact details published on the App.

## 34. REFUND POLICY

- If any User/Customer of the MoneyTap application makes an additional/extra/excess payment against any EMI payable for the loan taken from the approved MoneyTap Creditline, he/she can contact us at hello@moneytap.com The MoneyTap team shall endeavor to reconcile the said excess payment in the loan account with the respective Lending Partner within 30 days of receipt of such extra payment. The excess amount, if any, after reconciliation, shall be refunded back to the source account of the user/customer by the Lending Partner at the earliest Or the same may be adjusted against any future repayment obligation of such User/Customer. If any dispute still exists, a user/customer can reach out to the Grievance Redressal Officer of the Company.

# Section III: Freo Save

The website www.freo.money and Freo mobile application (jointly "**App**") are owned and operated by **MWYN TECH PRIVATE LIMITED** ("**MWYN**") a company incorporated under the provisions of the Companies Act, 2013, and having its registered office at G-405, 4th Floor – Gamma Block, Sigma Soft Tech Park, Varthur Kodi, Whitefield Post, Bangalore 560 066. To access or use the App on any compatible device you are required to accept these Terms and Conditions ("**T&C"**). By accepting these Terms and Conditions, you signify that You have read, understood and agree to be bound by these T&C and any other applicable law, whether or not you are a registered member of the App. As used herein, "**Users**" shall mean anyone who uses or accesses the App on any computer, mobile phone, tablet, console or other device (collectively, "**Device**"). Your continued use of the App shall be constituted as your acceptance to the T&C, as revised from time to time. If you do not agree with these T&C, please do not access and use the App. For the purposes of these T&C, "**we**", "**our**" and "**us**" shall mean MWYN, and/or third-party service providers engaged by MWYN to render certain services on the App and '**you**' and '**your**' shall mean a User.

## 1. TERMS AND CONDITIONS

**1.1.** We reserve the right to update or modify these T&C at any time. Your access and use of the App following any such change constitutes your agreement to follow and be bound by these T&C, as updated or modified. For this reason, we encourage you to review these T&C each time you access and use the App.

## 2. PURPOSE

**2.1.** These App will give you access to credit monitoring and banking accounts. Further it will evaluate your eligibility for other products such as credit cards, credit lending, gold loans, insurance, credit for QR code-based retail store purchases, online transactions and other financial utilities (hereinafter collectively referred to as "**financial products**") via partnership with regulated banks and Non-Banking Financial Companies ("**NBFCs**"). It is hereby clarified that all the services are rendered by third party banks and NBFCs and we are only facilitating access and use of the same.

## 3. ELIGIBILITY

**3.1.** You represent and warrant that you are competent and eligible to enter into a legally binding agreement and be bound by these T&C. You shall not access and use the App if you are not competent to contract under the applicable laws, rules and regulations.

**3.2.** For accessing the App and using its services, you, as a User, further represent that you are an Indian national having tax residency in India. You also represent and assure that you are not a tax resident of any other country.

**3.3.** We maintain the right to provide services to only those users who are – a) competent to enter into legally binding contracts, b) have made the representations as provided above, c) and also qualify under the internal policy(ies) for the same determined solely by us from time to time. We shall have the sole right to change, modify, add or remove, in whole or in part, its internal policy(ies), in relation to the provision of the App's services at any time without any prior written notice or intimation to the Users. Further, we shall have the right to not entertain any requests in relation to the same, from the users towards such services without assigning any reason.

**3.4.** We shall have the right to not process a transaction through the App, if MWYN in its sole discretion determines that such transaction undertaken by a User is not authorized by such User or that the transaction is not genuine or suspicious.

**3.5.** If you represent a company, partnership firm or sole proprietorship, you shall be eligible to access the App and avail of the features and facilities on its behalf only if you have been duly authorized by way of necessary corporate action, as may be prescribed statutorily and/or under the charter documents of such entity and further, if you have fulfilled such additional eligibility requirements as MWYN may require in connection therewith.

## 4. INTELLECTUAL PROPERTY POLICY

**4.1.** All of the content on the App, including, without limitation, all of the page headers, images, illustrations, graphics, audio clips, video clips or text, reports generated, trademarks, tradenames ("**App Content**"), constitute our and our licensors' intellectual property. Copyright laws in all applicable jurisdictions protect the App and the App Content.

**4.2.** You may access the App, avail of the features and facilities and utilize the App Content for your personal or internal requirements only. You are not entitled to duplicate, distribute, create derivative works of, display, or commercially exploit the App Content, features or facilities, directly or indirectly, without our prior written permission. If you would like to request permission to commercially exploit any particular App Content, you could contact us in the manner provided for herein.

**4.3.** MWYN and its licensors, if any, are the sole owners of the underlying software and source code associated with the App and all the trademarks, copyright and any other intellectual property rights of any nature in the App.

## 5. USER ACCOUNT, PASSCODE & SECURITY

**5.1.** You have an option to set a security passcode on the App once you have been approved for the financial product applied for. You are responsible for maintaining the confidentiality of the passcode and your account ("**Account**") and you are also fully responsible for all activities that occur under your passcode or Account. You agree to: (a) immediately notify us of any unauthorized use of your passcode or Account or any other breach of security; and (b) ensure that you exit from your Account at the end of each session. We cannot and will not be liable for any loss or damage arising from your failure to comply with this Clause 5.

**5.2.** You hereby acknowledge that the deletion of the App from the Device does not constitute termination of your Account and agree to undertake the process detailed herein in order to complete de-registration. If and when you are desirous of having your name and other details removed from the records of MWYN, immediately upon receiving your written request to that effect, MWYN shall remove and/delete all such information. You hereby acknowledge that the removal of your details from the App does not constitute termination of your obligations, if any, to our bank and /or NBFC partners who may have provided the financial product through our App.

## 6. USE OF APP – FEATURES AND FACILITIES

**6.1.** Eligibility and approval for the following products/services is determined by the App:

**6.1.1. Credit Line:** On-demand access to credit up to Rs. 5,00,000/- (Rupees five lakhs) with complete flexibility on the amount borrowed and repayments.

**6.1.2. Savings Account:** A modern digital savings account that offers goal-based savings, spending insights and a guided journey to build credit health.

**6.1.3. Pay:** An app that offers users credit, interest free for 30 (thirty) days. It also offers point-of-sale credit as a result of partnerships with online and offline vendors.

**6.1.4. Freo Cards:** A suite of cards with features like "auto-EMI" and "pay later" for both online and offline transactions.

**6.1.5. Freo Credit Score:** An app that lets users find out their credit score and get insights into it as well as get advice on credit health, and others, for free.

**6.2.** Through the App, MWYN assists Users to gain eligibility to certain credit schemes from its banking and financial partners. Through the App, MWYN assists Users to gain eligibility to merchant based UPI transactions linked to the post-paid limit provided by MWYN.

**6.3.** In order to access the services provided by the third party banks/NBFCs; you are required to provide such documents as required by the third party banks/NBFCs. The process of KYC (know your customer) documentation and authentication will be done by MWYN and / or any third party engaged by MWYN and/or the third party banks/NBFCs. It is hereby clarified that we will only collect and undertake the KYC process on behalf of the third party banks/NBFCs and provide them with the documents submitted by you. Please note that notwithstanding a successful authentication pursuant to completion of KYC process, the provision of services shall be at the sole discretion of the third party banks/NBFCs.

**6.4.** Our partner/third party bank/NBFC's terms and condition s are set out herein.

**6.5.** Your continued use of the services provided by our partner/third party bank/NBFC shall be constituted as your acceptance to its terms and conditions, as revised from time to time.

**6.6.** MWYN hereby grants to you a restricted, non-transferable, license to download and use the App on a Device, having the specifications provided for in Clause 10 of these T&C, which you own or control, to avail of the functions and features in accordance with these T&C.

**6.7.** The App provides inter alia a combination of the following facilities to its visitors:

**6.7.1.** Qualification for various financial products;

**6.7.2.** Monitoring personal financial transactions and banking history; and

**6.7.3.** Personal banking account management.

**6.8.** Your usage of the App will necessitate you to provide to us certain personal and financial information, which shall be collected and maintained as per the terms laid down in our privacy policy available at https://freo.money/privacy-policy/ ("**Privacy Policy**").

**6.9.** We shall not mediate or attempt to get involved in and resolve any disputes or disagreements inter se between you and third party/ies.

**6.10.** We will use your name as per the records in NSDL as the name in the application.

**6.11.** MWYN may update the App from time to time in order to, inter alia, increase its efficiency, optimize user interface and add new features and/or facilities.

**6.12.** We allow our affiliates or third parties to collect certain information when you visit our App through the use of cookies or third-party web beacon.

**6.13.** You are required to seek MWYN's permission in case you are writing something associated with the App on social media or otherwise. In the event you post any content on your own site or any other third party sites about us without our prior written permission, we may take strict actions against you.

**6.14.** You may choose to, or we may invite you to submit comments or ideas about the services rendered under these T&C, including without limitation about how to improve the services. By submitting any such ideas, you agree that your disclosure is gratuitous, unsolicited and without restriction and will not place MWYN or any of its affiliates or subsidiaries, under any fiduciary or other obligation, and that MWYN will be free to use the idea without any additional compensation to you, and/or to disclose the idea on a non-confidential basis or otherwise to anyone. You further acknowledge that, by acceptance of your submission, MWYN does not waive any rights to use similar or related ideas previously known to, or developed by employees, or obtained from sources other than you.

**6.15.** IN THE EVENT YOU HAVE ANY COMPLAINT AGAINST THE CONTENTS (OR ANY PORTION THEREOF), INCLUDING THAT THE CONTENTS THEREIN ARE INCORRECT OR BREACH THE RIGHTS OF A THIRD PARTY, MWYN SHALL TAKE ALL COMMERCIALLY REASONABLE MEASURES TO ADDRESS THE SAME. HOWEVER, MWYN'S SOLE OBLIGATION IN THIS REGARD SHALL BE TO REMOVE SUCH CONTENT FROM THE APP; AND THE USER SHALL HAVE NO FURTHER CAUSE OF ACTION AGAINST MWYN.

## 7. SERVICE PROVIDERS

**7.1.** We may employ third-party service providers and individuals due to the following reasons:

**7.1.1.** To facilitate our service;

**7.1.2.** To provide the service on our behalf;

**7.1.3.** To perform service-related services; or

**7.1.4.** To assist us in analyzing how our service is used.

**7.2.** You acknowledge that the third-party service provider/agent/agencies will have access to your Personal Information on a need to know basis to assist us in rendering service, and the service providers are restricted from using the same for any other reason. The third-party service providers are obligated not to disclose or use the information for any other purpose.

# 8. YOUR RIGHTS & PREFERENCES AS A DATA SUBJECT IN INDIA

**8.1.** These T&C are intended for Users within the territory of India and govern your rights as per applicable law within the territory of India. However, in the event you fall under a jurisdiction outside the purview of Indian law, we will not be liable for any claim, action and/or right initiated/exercised by you as per the extant laws of that jurisdiction. Therefore, we request you to kindly use the App accordingly.

# 9. CUSTOMER COMMUNICATIONS

**9.1.** Accepting these T&C implies your express consent to be contacted by us, our agents, representatives, affiliates, or anyone calling on our behalf at any contact number, or physical or electronic address provided by you while registering your Account. You further agree to us contacting you in any manner, including without limitation, SMS messages (including text messages), WhatsApp, calls using pre-recorded messages or artificial voice, calls and messages delivered using auto telephone dialing system or an automatic texting system, and notifications sent via the App. Automated messages may be played when the telephone is answered, whether by you or someone else. In the event that an agent or representative calls, he or she may also leave a message on your answering machine, voice mail, or send one via SMS.

**9.2.** You certify, warrant and represent that the telephone numbers and/or email addresses and any other information that you have provided to us are your own and not someone else's and are true, accurate, current and complete. You represent that you are permitted to receive calls at each of the telephone numbers you have provided to us and emails at each of the email addresses you have provided us. You agree to notify us whenever you stop using a particular telephone number(s) and/or email address(es).

# 10. SYSTEM REQUIREMENTS

**10.1.** In order to use the App, you are required to have a compatible Device with the following minimum specifications: Android Operating System version 4.1 (SDK level 16) or higher or iOS 9.0 or higher.

# 11. USER GUIDELINES

**11.1.** In consideration of MWYN granting you the rights hereunder, you hereby agree not to use the App for any purpose that is unlawful under any applicable laws and/or in violation of the terms of these T&C and our Privacy Policy. You shall not use the App in any manner that could damage, disable, overburden, or impair our server, or any network(s) connected to any server, or interfere with any other party's use and enjoyment of the App. You shall not attempt to gain unauthorized access to any functions and features, other user accounts, computer systems or networks connected to any server, in any manner, including, through hacking, password mining or any other means. You shall not obtain or attempt to obtain

any materials or information through any means which is not intentionally made available through the App.

**11.2.** The App is made available to you for your own personal and non-commercial use alone. You shall not allow third parties to: (i) make and/or distribute copies of the App or any deliverable generated by the App; (ii) attempt to copy, reproduce, alter, modify and/or reverse engineer the App; and/or (iii) create derivative works of the App.

**11.3.** You accept that any and all operations emanating from your Device shall be assumed to have been initiated by you.

**11.4.** You shall not copy, reproduce, distribute, or create derivative works of our content that is available on the App. Also, you shall not reverse engineer or reverse compile our technology that is available on the App, including, without limitation, such Java Applet, as may be associated with the App from time to time.

**11.5.** You shall request MWYN, to block the Account and change the passcode immediately for the Account, if your Device has been lost or stolen.

**11.6.** You are responsible for any and all activities that occur in your Account. You agree to notify MWYN immediately of any unauthorized use of the Account or any other breach of security. MWYN shall not be liable for any loss to you or your organization owing to negligent actions or a failure on your part to inform MWYN, within a reasonable time, about loss or theft of your Device and/or any unauthorized access in your Account, either with or without your knowledge.

**11.7.** You shall be liable for losses incurred by MWYN or any other party due to a third party's use of the Account. You shall not use any other person's account at any time, without the permission of the account holder and MWYN.

**11.8.** MWYN shall make all reasonable efforts to ensure that your information is kept confidential. However, MWYN shall not be responsible for any disclosure or leakage of confidential information and/or loss or damage of the Device due to theft, negligence or failure on your part to practice safe computing.

**11.9.** You shall ensure that while using the functions and features, all prevailing and applicable laws, rules and regulations, shall at all times, be strictly complied with by you and MWYN shall not be liable in any manner whatsoever for default of any nature, by you, regarding the same.

**11.10.** You understand and acknowledge that upon using the App, you authorize us to access third party sites designated by you, on your behalf, to retrieve such information requested by you, and to register for accounts requested by you. For all purposes hereof, you hereby grant us a limited powers and hereby authorize us with the full power of substitution and re-substitution, for you and in your name, place and stead, in any and all capacities, to access third party internet sites, servers or documents, retrieve information, and use your information, all as described above, with the full power and authority to do

and perform each and every act and thing requisite and necessary to be done in connection with services and facilities available on the App, as fully to all intents and purposes as you might or could do in person. YOU ACKNOWLEDGE AND AGREE THAT WHEN WE ACCESS AND RETRIEVE INFORMATION FROM THIRD PARTY SITES, WE ARE ACTING AS YOUR AGENT, AND NOT THE AGENT OR ON BEHALF OF THE THIRD PARTY. You agree that such third parties shall be entitled to rely on the foregoing authorization, agency granted by you.

**11.11.** You must notify your bank immediately in the event your debit/credit/prepaid card is lost, stolen, not received, swallowed at an ATM, or is being misused without your permission. Please refer the detailed instructions received from your bank for additional precautions to be taken in case of loss/ theft/ misuse of your debit/credit/prepaid card.

**11.12.** You hereby acknowledge and agree that MWYN shall not be liable for failure of any transaction undertaken for any reason whatsoever including but not limited to deficiency of service and/or products delivered as well as technical errors. You further acknowledge that MWYN shall not be responsible in any manner whatsoever, for any loss incurred by you for a failed/ incomplete transaction undertaken by you using MWYN services.

**11.13.** You hereby agree and express your voluntary, unequivocal and informed consent to your personal data or financial information (including such data as may be designated as 'personally identifiable data' under the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011 or other applicable law), being processed, disclosed and/or transferred by MWYN to third-party entities.

## 12. INDEMNIFICATION

**12.1.** You agree to protect, defend and indemnify us and hold us and our representatives harmless from and against any and all claims, damages, costs and expenses, including attorneys' fees, arising from or related to your access and use of the App in violation of these T&C and/or your infringement, or infringement by any other user of your Account, of any intellectual property or other right of anyone.

**12.2.** The terms of this provision will survive any termination or cancellation of these T&C or your use of the App.

## 13. REFUND PROCESS

**13.1.** All refunds or cancellations shall be in accordance with the policies of the third party banks and NBFCs. You agree to read and study them prior to availing the services provided by them through this App.

**13.2.** We will facilitate you in getting a refund under the following circumstances:

**13.2.1.** The refund is allowed by such third party banks and NBFCs;

**13.2.2.** Should the transaction fail due to any reason, i.e., the money is debited from your account and not credited to the merchant account (subject to clause 13.2.3 below), your account will be credited to the extent of the amount debited in the failed transaction; and

**13.2.3.** Should the money fail to be credited into the merchant's account within 48 (forty eight) hours, your account will be credited to the extent of the amount debited in the failed transaction.

## 14. WARRANTIES

**14.1.** The App and the functions and features therein are provided on an "**as is**" and on an "**as available**" basis. We expressly disclaim all warranties of any kind, whether express or implied, including, but not limited to the implied warranties of merchantability, fitness for a particular purpose and non-infringement.

**14.2.** We shall make reasonable efforts to make available the App and the functions and features at all times. However, we make no warranty that the App shall meet your requirements, be uninterrupted, timely, secure, and/or error free. Further we do not make any warranty as to the results that may be obtained from the use of the functions and features or as to the accuracy, reliability and/or quality of the output derived therefrom.

**14.3.** We shall not be liable for the loss and/or damage of the confidential information or data of the User arising as a result of an event or a series of related events, that is beyond the control of MWYN, including failures of or problems with the internet or part of the internet, attempted hacker attacks, hacker attacks, denial of service attacks and/or viruses or other malicious software attacks or infections.

**14.4.** Any material downloaded or otherwise obtained through the App is done at your own discretion and risk and you are solely responsible for any damage to your Device or loss of data that results from the download of any such material. No advice or information, whether oral or written, obtained by you from us through or from the service will create any warranty not expressly stated in these T&C.

**14.5.** We shall not be liable for any losses and/or damages which may arise as a result of a third party entity's usage of the USER's personal data or financial information (including such data as may be designated as 'personally identifiable data' under the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011).

## 15. LIMITATION OF LIABILITY

**15.1.** IN NO EVENT SHALL WE BE LIABLE FOR ANY DIRECT, INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES OR FOR ANY DAMAGES WHATSOEVER INCLUDING, WITHOUT LIMITATION, DAMAGES FOR LOSS OF USE, DATA OR PROFITS, ARISING OUT OF OR IN ANY WAY CONNECTED WITH THE ACCESS, USE OR PERFORMANCE OF THIS APP'S FUNCTIONS AND

FEATURES OR FOR INTERRUPTIONS, DELAY, ETC., EVEN IF WE WERE ADVISED OF THE POSSIBILITY OF DAMAGES RESULTING FROM THE COST OF GETTING SUBSTITUTE FACILITIES ON THE APP, ANY PRODUCTS, DATA, INFORMATION OR SERVICES PURCHASED OR OBTAINED OR MESSAGES RECEIVED OR TRANSACTIONS ENTERED INTO THROUGH OR FROM THE APP, UNAUTHORIZED ACCESS TO OR ALTERATION OF YOUR TRANSMISSIONS OR DATA STATEMENTS OR CONDUCT OF ANYONE ON THE APP, OR INABILITY TO USE THE APP, THE PROVISION OF OR FAILURE TO PROVIDE THE FUNCTIONS AND FEATURES, WHETHER BASED ON CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY OR OTHERWISE. THIS CLAUSE SHALL SURVIVE IN PERPETUITY.

## 16. SEVERABILITY

**16.1.** If any provision of these T&C is held to be illegal, invalid or unenforceable under any present or future applicable laws: (a) such provision will be replaced with another, which is not prohibited or unenforceable and has, as far as possible, the same legal and commercial effect as that which it replaces; and (b) the remaining provisions of the T&C will remain in full force and effect and will not be affected by the illegal, invalid, or unenforceable provision or by its severance here from.

## 17. TERMINATION

**17.1.** These Terms and the right to use granted hereunder shall take effect on the date you create an Account with the App, and shall continue in effect until termination this Agreement in accordance with this section.

**17.2.** We may suspend/terminate the use of the App at any time, with or without cause, after giving notice of the suspension/termination to you.

**17.3.** Upon termination, the rights and license granted to you herein shall terminate and you must cease all use of the App.

## 18. WAIVER

**18.1.** Any failure on the part of MWYN to require performance of any provision of these T&C shall not affect its right to full performance thereof at any time thereafter, and any waiver by MWYN of a breach of any provision hereof shall not constitute a waiver of a similar breach in the future or of any other breach.

## 19. ASSIGNMENT

**19.1.** You shall not assign or transfer any rights, obligations, or privileges that you have under these T&C, without the prior written consent of MWYN. Subject to the foregoing, these T&C will be binding on the successors and permitted assignees of MWYN. Any assignment or transfer in violation of this clause will be deemed null and void.

# 20. INDEPENDENCE FROM PLATFORMS

**20.1.** The App is independent of any platform on which it is located. The App is not associated, affiliated, sponsored, endorsed or in any way linked to any platform operator, including, without limitation, Apple, Google, Android or RIM Blackberry (each being an "**Operator**").

**20.2.** Your download, installation, access to or use of the App is also bound by the terms and conditions of the Operator.

**20.3.** You and MWYN acknowledge that these T&C are concluded only between you and MWYN, and not with an Operator, and MWYN, not those Operators, are solely responsible for the App and the content thereof to the extent specified in these T&C.

**20.4.** MWYN is solely responsible for providing any maintenance and support services with respect to the App as required under applicable law. You and MWYN acknowledge that an Operator has no obligation whatsoever to furnish any maintenance and support services with respect to the App.

**20.5.** You and MWYN acknowledge that MWYN, not the relevant Operator, is responsible for addressing any User claims or any third party claim relating to the App or your possession and/or use of the App, including, but not limited to: (i) any claim that the App fails to conform to any applicable legal or regulatory requirement; and (ii) claims arising under consumer protection or similar legislation.

**20.6.** You and MWYN agree that, in the event of any third party claim that the App or your possession and use of the App infringes that third party's intellectual property rights, MWYN and not the relevant Operator, will be solely responsible for the investigation, defense, settlement and discharge of any such intellectual property infringement claim; provided such infringement was caused by MWYN.

**20.7.** You must comply with any applicable third party terms of agreement when using the App (e.g. you must ensure that your use of the App is not in violation of your Device agreement or any wireless data service agreement).

**20.8.** You and MWYN agree that the relevant Operator, and that Operator's subsidiaries, are third party beneficiaries of these T&C, and that, upon your acceptance of these T&C, that Operator will have the right (and will be deemed to have accepted the right) to enforce the terms of these T&C against you as a third party beneficiary thereof.

# 21. UPDATES

**21.1.** MWYN reserves the right to update the App, in order to, inter alia, increase efficiency, optimize user interface, and add new facilities from time to time. Update packages will be sent to you on your Device for download and installation.

**21.2.** You hereby agree to install the updates from time to time and acknowledge that MWYN will only be able to provide Account support for the App if you ensure installation of all updates upon receiving notifications thereof when using the App.

## 22. VALIDITY OF T&C

**22.1.** These T&C shall apply when you complete the authentication process and create an account and shall remain valid and binding on you for so long as you maintain the Account.

**22.2.** You hereby agree and acknowledge that you may have to sign additional terms and conditions basis the services you are availing.

## 23. SECURITY

**23.1.** You are prohibited from violating or attempting to violate the security of the App, including, without limitation:

**23.1.1.** accessing data not intended for you or logging into an account which you are not authorized to access;

**23.1.2.** attempting to probe, scan or test the vulnerability of a system or network or to breach security or authentication measures without proper authorization; or

**23.1.3.** interfering with service to any user, host, or network.

**23.2.** You shall not misuse this App by intentionally introducing viruses, trojans, worms, logic bombs or other materials that are malicious or technologically harmful (together "Viruses"). You will not attempt to gain unauthorized access to the App, or any server, computer or database connected to the App. You will not attack this App via a denial-of-service attack. Further, you shall not interfere with or circumvent any security feature of the App or any feature that restricts or enforces limitations on use of or access to the App, such as probing or scanning the vulnerability of any system, network or breach.

**23.3.** Should you breach the provisions of this Clause, you will be liable to be prosecuted under the Information Technology Act, 2000 and other applicable statutes. We will immediately report such breach to the relevant law enforcement authorities and will co-operate with such authorities by disclosing your identity to them. In the event of such a breach, your rights to use this App will cease immediately.

**23.4.** We will not be liable for any loss or damage caused by a denial-of-service attack or Viruses that may infect your computer equipment, computer programs, data or other proprietary material due to your use of this App or to your downloading of any material posted on it.

**23.5.** You agree to immediately report to us all incidents involving suspected or actual unauthorized access, disclosure, alteration, loss, damage, or destruction of data.

**23.6.** You shall not interfere with or disrupt (or attempt to interfere with or disrupt) access and enjoyment of the App by other users or any host or network, including, without limitation, creating or transmitting unwanted electronic communications such as "spam" to other users, overloading, flooding or mail-bombing the App, or scripting the creation of content in such a manner as to interfere with or create an undue burden on the App.

**23.7.** All actions performed by any person using your account and password shall be deemed to have been committed by you and you shall be liable for the same. We reserve the right to suspend/terminate your account at any time if it is found that you have been sharing the password with any unauthorized user.

**23.8.** In order to reduce the risk of unauthorized access, a user is logged out from the account and will have to enter his details and login afresh, after 3 consecutive incorrect login attempts.

## 24. MONITORING

**24.1.** All electronic communications and content presented and/or passed to us, including that presented and/or passed from remote access connections, may be monitored, examined, saved, read, transcribed, stored, or retransmitted in the course of daily operations by any duly authorized employee or agent of ours in the exercise of their duties, or by law enforcement authorities who may be assisting us in investigating possible contravention/non-compliance with applicable law. Electronic communications and content may be examined by automated means. Further, we have the right to reject, at our sole discretion, from the App any electronic communications or content deemed not to be in compliance with the corporate policies and procedures of MWYN.

## 25. GOVERNING LAW AND JURISDICTION

**25.1.** These T&C (and by extension, the Privacy Policy) are governed and construed in accordance with Indian law. By using the App, you hereby irrevocably consent to the exclusive jurisdiction and venue of courts in Bangalore, Karnataka, India, in the event of any disputes arising out of or in relation to your access to and use of the App.

## 26. CONTACT INFORMATION

**26.1.** If you have any questions or concerns regarding the Terms of Service or Privacy Policy, please feel free to contact us at the following email address: hello@freo.money or at the contact details published on the App.

# Section IV: Freo Credit Score

The Freo Credit Score mobile application ( "App") is owned and operated by MWYN TECH PRIVATE LIMITED ("MWYN") a company incorporated under the provisions of the Companies Act, 2013, and having its registered office at G-405, 4th Floor – Gamma Block, Sigma Soft Tech Park, Varthur Kodi, Whitefield Post, Bangalore 560 066. To access or use the App on any compatible device you are required to accept these Terms and Conditions ("T&C"). By accepting these Terms and Conditions, you signify that you have read, understood and agree to be bound by these T&C and any other applicable law, whether or not you are a registered member of the App. As used herein, "Users" shall mean anyone who uses or accesses the App on any computer, mobile phone, tablet, console or other device (collectively, "Device"). Your continued use of the App shall be constituted as your acceptance to the T&C, as revised from time to time. If you do not agree with these T&C, please do not access and use the App. For the purposes of these T&C, "we", "our" and "us" shall mean MWYN, and/or third-party service providers engaged by MWYN to render certain services on the App and 'you' and 'your' shall mean a User who meets the eligibility criteria set out below.

## 1. TERMS AND CONDITIONS

**1.1**. We reserve the right to change or update these T&C at any time. Such changes shall be effective immediately upon posting on this App. You will be notified of such update by way of an in-app notification / email once such update is implemented. Your continued usage of the App shall be dependent on you accepting such updated T&C.

## 2. PURPOSE

**2.1.** We are an App that shows a User's Credit Score and provides a summary of the credit report. The App explains the significance of having a good credit score with use cases. FAQs relating to lending are answered and there is space for blogs which explain finance products in greater detail. The App provides a Credit builder and repair program for customers who are "New to Credit" (NTC) and customers with a bad/low credit score, respectively. It also allows Users to set reminders to pay their EMIs; and pay their EMIs as well.

## 3. ELIGIBILITY

**3.1.** You represent and warrant that you are competent and eligible to enter into a legally binding agreement and be bound by these T&C. You shall not access and use the App if you are not competent to contract under the applicable laws, rules and regulations.

**3.2.** For accessing the App and using its services, you, as a User, further represent that you are an Indian national having tax residency in India. You also represent and assure that you are not a tax resident of any other country.

**3.3.** MWYN maintains the right to provide services to only those users who are – a) competent to enter into legally binding contracts, b) have made the representations as provided above, c) and also qualify under the internal policy(ies) for the same determined solely by MWYN from time to time. MWYN shall have the sole right to change, modify, add or remove, in whole or in part, its internal policy(ies), in relation to the provision of the App's services at any time without any prior written notice or intimation to the Users. Further, MWYN shall have the right to not entertain any requests in relation to the same, from the users towards such services without assigning any reason.

**3.4.** MWYN shall have the right to not process a transaction through the App, if MWYN in its sole discretion determines that such transaction undertaken by a User is not authorized by such User or that the transaction is not genuine or suspicious.

**3.5.** If you represent a company, partnership firm or sole proprietorship, you shall be eligible to access the App and avail of the features and facilities on its behalf only if you have been duly authorized by way of necessary corporate action, as may be prescribed statutorily and/or under the charter documents of such entity and further, if you have fulfilled such additional eligibility requirements as MWYN may require in connection therewith.

## 4. INTELLECTUAL PROPERTY POLICY

**4.1**. All of the content on the App, including, without limitation, all of the page headers, images, illustrations, graphics, audio clips, video clips or text, reports generated, trademarks, tradenames ("App Content"), constitute our and our licensors' intellectual property. Copyright laws in all applicable jurisdictions protect the App and the App Content.

**4.2.** You may access the App, avail of the features and facilities and utilize the App Content for your personal or internal requirements only. You are not entitled to duplicate, distribute, create derivative works of, display, or commercially exploit the App Content, features or facilities, directly or indirectly, without our prior written permission. If you would like to request permission to commercially exploit any particular App Content, you could contact us in the manner provided for herein.

**4.3.** MWYN and its licensors, if any, are the sole owners of the underlying software and source code associated with the App and all the trademarks, copyright and any other intellectual property rights of any nature in the App.

## 5. USER ACCOUNT, PASSCODE & SECURITY

**5.1.** You have an option to set a security passcode on the App once you are approved for a credit limit. You are responsible for maintaining the confidentiality of the passcode and your account ("Account") and are fully responsible for all activities that occur under your passcode or Account. You agree to: (a) immediately notify us of any unauthorized use of your passcode or Account or any other breach of security; and (b) ensure that you exit

from your Account at the end of each session. We cannot and will not be liable for any loss or damage arising from your failure to comply with this Clause 5.

**5.2.** You hereby acknowledge that the deletion of the App from the Device does not constitute termination of your Account and agree to undertake the process detailed herein in order to complete de-registration. If and when you are desirous of having your name and other details removed from the records of MWYN, immediately upon receiving your written request to that effect, MWYN shall remove and/delete all such information.

## 6. USE OF APP – FEATURES AND FACILITIES

**6.1.** Through the App, we show a User's Credit Score and provide a summary of the credit report. We explain the significance of having a good credit score with use cases and provide a Credit builder program for New to Credit customers and a credit repair program for customers with a bad or low credit score. We also allow Users to set reminders to pay their EMIs; and pay their EMIs as well.

**6.2.** We hereby grant to you a restricted, non-transferable, license to download and use the App on a Device, having the specifications provided for in Clause 10 of these T&C, which you own or control, to avail of the functions and features in accordance with these T&C.

**6.3.** The App provides inter alia a combination of the following facilities to its visitors:

**6.3.1.** showing a User's credit score and providing a summary of the credit report;

**6.3.2.** answering FAQs relating to lending; and

**6.3.3.** providing a platform for blogs which explain finance products;

**6.3.4.** providing a credit builder for NTC and credit repair program for customers with a bad or low credit score;

**6.3.5.** providing reminders to Users to pay their EMIs; and

**6.3.6.** provide a medium for Users to pay their EMIs.

**6.4.** Your usage of the App will necessitate you to provide to us certain personal and financial information, which shall be collected and maintained as per the terms laid down in our privacy policy available at ("Privacy Policy").

**6.5.** We shall not mediate or attempt to get involved in and resolve any disputes or disagreements inter se between you and third party/ies.

**6.6.** We will use your name as per the records in NSDL as the name in the application.

**6.7.** MWYN may update the App from time to time in order to, inter alia, increase its efficiency, optimize user interface and add new features and/or facilities.

**6.8.** We allow our affiliates or third parties to collect certain information when you visit our App through the use of cookies or third-party web beacon to collect this information by those third parties.

**6.9.** You are required to seek MWYN's permission in case you are writing something associated with the App on social media or otherwise. In the event you post any content on your own site or any other third party sites about us without our prior written permission, we may take strict actions against you.

**6.10.** IN THE EVENT YOU HAVE ANY COMPLAINT AGAINST THE CONTENTS (OR ANY PORTION THEREOF), INCLUDING THAT THE CONTENTS THEREIN ARE INCORRECT OR BREACH THE RIGHTS OF A THIRD PARTY, MWYN SHALL TAKE ALL COMMERCIALLY REASONABLE MEASURES TO ADDRESS THE SAME. HOWEVER, MWYN'S SOLE OBLIGATION IN THIS REGARD SHALL BE TO REMOVE SUCH CONTENT FROM THE APP; AND THE USER SHALL HAVE NO FURTHER CAUSE OF ACTION AGAINST MWYN.

## 7. SERVICE PROVIDERS

**7.1.** We may employ third-party service providers and individuals for the following reasons:

**7.1.1.** To facilitate our service;

**7.1.2.** To provide the service on our behalf;

**7.1.3.** To perform service-related services; or

**7.1.4.** To assist us in analyzing how our service is used.

**7.2.** You acknowledge that the third-party service provider/agent/agencies will have access to your Personal Information on a need basis to assist us in rendering service, and the service providers are restricted from using the same for any other reason. The third-party service providers are obligated not to disclose or use the information for any other purpose.

## 8. YOUR RIGHTS & PREFERENCES AS A DATA SUBJECT IN INDIA

**8.1.** These T&C are intended for Users within the territory of India and govern your rights as per applicable law within the territory of India. However, in the event you fall under a jurisdiction outside the purview of Indian law, MWYN will not be liable for any claim, action and/or right initiated/exercised by you as per the extant laws of that jurisdiction. Therefore, we request you to kindly use the App accordingly.

## 9. CUSTOMER COMMUNICATIONS

**9.1.** Accepting these T&C implies your express consent to be contacted by us, our agents, representatives, affiliates, or anyone calling on our behalf at any contact number, or

physical or electronic address provided by you while registering your Account. You further agree to us contacting you in any manner, including without limitation, SMS messages (including text messages), WhatsApp, calls using pre-recorded messages or artificial voice, calls and messages delivered using auto telephone dialing system or an automatic texting system, and notifications sent via the App. Automated messages may be played when the telephone is answered, whether by you or someone else. In the event that an agent or representative calls, he or she may also leave a message on your answering machine, voice mail, or send one via SMS.

**9.2.** You certify, warrant and represent that the telephone numbers and/or email addresses and any other information that you have provided to us are your own and not someone else's and are true, accurate, current and complete. You represent that you are permitted to receive calls at each of the telephone numbers you have provided to us and emails at each of the email addresses you have provided us. You agree to notify us whenever you stop using a particular telephone number(s) and/or email address(es).

## 10. SYSTEM REQUIREMENTS

**10.1.** In order to use the App, you are required to have a compatible Device with the following minimum specifications: Android Operating System version 4.1 (SDK level 16) or higher or iOS 9.0 or higher.

## 11. USER GUIDELINES

**11.1.** In consideration of MWYN granting you the rights hereunder, you hereby agree not to use the App for any purpose that is unlawful under any applicable laws and/or in violation of the terms of these T&C and our Privacy Policy. You shall not use the App in any manner that could damage, disable, overburden, or impair our server, or any network(s) connected to any server, or interfere with any other party's use and enjoyment of the App. You shall not attempt to gain unauthorized access to any functions and features, other user accounts, computer systems or networks connected to any server, in any manner, including, through hacking, password mining or any other means. You shall not obtain or attempt to obtain any materials or information through any means which is not intentionally made available through the App.

**11.2.** The App is made available to you for your own personal and non-commercial use alone. You shall not allow third parties to: (i) make and/or distribute copies of the App or any deliverable generated by the App; (ii) attempt to copy, reproduce, alter, modify and/or reverse engineer the App; and/or (iii) create derivative works of the App.

**11.3.** You accept that any and all operations emanating from your Device shall be assumed to have been initiated by you.

**11.4.** You shall not copy, reproduce, distribute, or create derivative works of our content that is available on the App. Also, you shall not reverse engineer or reverse compile our

technology that is available on the App, including, without limitation, such Java Applet, as may be associated with the App from time to time.

**11.5.** You shall request MWYN, to block the Account and change the passcode immediately for the Account, if your Device has been lost or stolen.

**11.6.** MWYN shall make all reasonable efforts to ensure that your information is kept confidential. However, MWYN shall not be responsible for any disclosure or leakage of confidential information and/or loss or damage of the Device due to theft, negligence or failure on your part to practice safe computing.

**11.7.** You shall ensure that while using the functions and features, all prevailing and applicable laws, rules and regulations, shall at all times, be strictly complied with by you and MWYN shall not be liable in any manner whatsoever for default of any nature, by you, regarding the same.

**11.8.** You understand and acknowledge that upon using the App, you authorize us to access third party sites designated by you, on your behalf, to retrieve such information requested by you, and to register for accounts requested by you. For all purposes hereof, you hereby grant us a limited powers and hereby authorize us with the full power of substitution and re-substitution, for you and in your name, place and stead, in any and all capacities, to access third party internet sites, servers or documents, retrieve information, and use your information, all as described above, with the full power and authority to do and perform each and every act and thing requisite and necessary to be done in connection with services and facilities available on the App, as fully to all intents and purposes as you might or could do in person. YOU ACKNOWLEDGE AND AGREE THAT WHEN WE ACCESS AND RETRIEVE INFORMATION FROM THIRD PARTY SITES, WE ARE ACTING AS YOUR AGENT, AND NOT THE AGENT OR ON BEHALF OF THE THIRD PARTY. You agree that such third parties shall be entitled to rely on the foregoing authorization, agency granted by you.

**11.9.** You hereby acknowledge and agree that MWYN shall not be liable for failure of any transaction undertaken for any reason whatsoever including but not limited to deficiency of service and/or products delivered as well as technical errors. You further acknowledge that MWYN shall not be responsible in any manner whatsoever, for any loss incurred by you for a failed/ incomplete transaction undertaken by you using MWYN services.

**11.10.** You hereby agree and express your voluntary, unequivocal and informed consent to your personal data or financial information (including such data as may be designated as 'personally identifiable data' under the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011 or other applicable law), being processed, disclosed and/or transferred by MWYN to third-party entities.

## 12. INDEMNIFICATION

**12.1.** You agree to protect, defend and indemnify us and hold us and our representatives harmless from and against any and all claims, damages, costs and expenses, including attorneys' fees, arising from or related to your access and use of the App in violation of these T&C and/or your infringement, or infringement by any other user of your Account, of any intellectual property or other right of anyone.

**12.2.** The terms of this provision will survive any termination or cancellation of these T&C or your use of the App.

## 13. WARRANTIES

**13.1.** The App and the functions and features therein are provided on an "as is" and on an "as available" basis. We expressly disclaim all warranties of any kind, whether express or implied, including, but not limited to the implied warranties of merchantability, fitness for a particular purpose and non-infringement.

**13.2.** MWYN shall make reasonable efforts to make available the App and the functions and features at all times. However, we make no warranty that the App shall meet your requirements, be uninterrupted, timely, secure, and/or error free. Further we do not make any warranty as to the results that may be obtained from the use of the functions and features or as to the accuracy, reliability and/or quality of the output derived therefrom.

**13.3.** MWYN shall not be liable for the loss and/or damage of the confidential information or data of the User arising as a result of an event or a series of related events, that is beyond the control of MWYN, including failures of or problems with the internet or part of the internet, attempted hacker attacks, hacker attacks, denial of service attacks and/or viruses or other malicious software attacks or infections.

**13.4.** Any material downloaded or otherwise obtained through the App is done at your own discretion and risk and you are solely responsible for any damage to your Device or loss of data that results from the download of any such material. No advice or information, whether oral or written, obtained by you from us through or from the service will create any warranty not expressly stated in these T&C.

**13.5.** MWYN shall not be liable for any losses and/or damages which may arise as a result of a third party entity's usage of the USER's personal data or financial information (including such data as may be designated as 'personally identifiable data' under the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011).

## 14. LIMITATION OF LIABILITY

**14.1. I**N NO EVENT SHALL WE BE LIABLE FOR ANY DIRECT, INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES OR FOR ANY DAMAGES WHATSOEVER INCLUDING, WITHOUT LIMITATION, DAMAGES FOR LOSS OF USE, DATA OR PROFITS, ARISING OUT OF OR IN ANY WAY

CONNECTED WITH THE ACCESS, USE OR PERFORMANCE OF THIS APP'S FUNCTIONS AND FEATURES OR FOR INTERRUPTIONS, DELAY, ETC., EVEN IF WE WERE ADVISED OF THE POSSIBILITY OF DAMAGES RESULTING FROM THE COST OF GETTING SUBSTITUTE FACILITIES ON THE APP, ANY PRODUCTS, DATA, INFORMATION OR SERVICES PURCHASED OR OBTAINED OR MESSAGES RECEIVED OR TRANSACTIONS ENTERED INTO THROUGH OR FROM THE APP, UNAUTHORIZED ACCESS TO OR ALTERATION OF YOUR TRANSMISSIONS OR DATA STATEMENTS OR CONDUCT OF ANYONE ON THE APP, OR INABILITY TO USE THE APP, THE PROVISION OF OR FAILURE TO PROVIDE THE FUNCTIONS AND FEATURES, WHETHER BASED ON CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY OR OTHERWISE. THIS CLAUSE SHALL SURVIVE IN PERPETUITY.

## 15. SEVERABILITY

**15.1.** If any provision of these T&C is held to be illegal, invalid or unenforceable under any present or future applicable laws: (a) such provision will be replaced with another, which is not prohibited or unenforceable and has, as far as possible, the same legal and commercial effect as that which it replaces; and (b) the remaining provisions of the T&C will remain in full force and effect and will not be affected by the illegal, invalid, or unenforceable provision or by its severance here from.

## 16. TERMINATION

**16.1.** These Terms and the right to use granted hereunder shall take effect on the date you create an Account with the App, and shall continue in effect until termination this Agreement in accordance with this section.

**16.2.** MWYN may terminate the use of the App at any time after giving notice of the termination to you.

**16.3.** Upon termination, the rights and license granted to you herein shall terminate and you must cease all use of the App.

## 17. WAIVER

**17.1.** Any failure on the part of MWYN to require performance of any provision of these T&C shall not affect its right to full performance thereof at any time thereafter, and any waiver by MWYN of a breach of any provision hereof shall not constitute a waiver of a similar breach in the future or of any other breach.

## 18. ASSIGNMENT

**18.1.** You shall not assign or transfer any rights, obligations, or privileges that you have under these T&C, without the prior written consent of MWYN. Subject to the foregoing, these T&C will be binding on the successors and permitted assignees of MWYN. Any assignment or transfer in violation of this clause will be deemed null and void.

# 19. INDEPENDENCE FROM PLATFORMS

**19.1.** The App is independent of any platform on which it is located. The App is not associated, affiliated, sponsored, endorsed or in any way linked to any platform operator, including, without limitation, Apple, Google, Android or RIM Blackberry (each being an "Operator").

**19.2.** Your download, installation, access to or use of the App is also bound by the terms and conditions of the Operator.

**19.3.** You and MWYN acknowledge that these T&C are concluded only between you and MWYN, and not with an Operator, and MWYN, not those Operators, are solely responsible for the App and the content thereof to the extent specified in these T&C.

**19.4.** MWYN is solely responsible for providing any maintenance and support services with respect to the App as required under applicable law. You and MWYN acknowledge that an Operator has no obligation whatsoever to furnish any maintenance and support services with respect to the App.

**19.5.** You and MWYN acknowledge that MWYN, not the relevant Operator, is responsible for addressing any User claims or any third party claim relating to the App or your possession and/or use of the App, including, but not limited to: (i) any claim that the App fails to conform to any applicable legal or regulatory requirement; and (ii) claims arising under consumer protection or similar legislation.

**19.6.** You and MWYN agree that, in the event of any third party claim that the App or your possession and use of the App infringes that third party's intellectual property rights, MWYN and not the relevant Operator, will be solely responsible for the investigation, defense, settlement and discharge of any such intellectual property infringement claim; provided such infringement was caused by MWYN.

**19.7.** You must comply with any applicable third party terms of agreement when using the App (e.g. you must ensure that your use of the App is not in violation of your Device agreement or any wireless data service agreement).

**19.8.** You and MWYN agree that the relevant Operator, and that Operator's subsidiaries, are third party beneficiaries of these T&C, and that, upon your acceptance of these T&C , that Operator will have the right (and will be deemed to have accepted the right) to enforce the terms of these T&C against you as a third party beneficiary thereof.

# 20. UPDATES

**20.1.** MWYN reserves the right to update the App, in order to, inter alia, increase efficiency, optimize user interface, and add new facilities from time to time. Update packages will be sent to you on your Device for download and installation.

**20.2.** You hereby agree to install the updates from time to time and acknowledge that MWYN will only be able to provide Account support for the App if you ensure installation of all updates upon receiving notifications thereof when using the App.

## 21. VALIDITY OF T&C

**21.1.** These T&C shall apply when you complete the authentication process and create an account and shall remain valid and binding on you for so long as you maintain the Account.

## 22. SECURITY

**22.1.** You are prohibited from violating or attempting to violate the security of the App, including, without limitation:

**22.1.1.** accessing data not intended for you or logging into an account which you are not authorized to access;

**22.1.2.** attempting to probe, scan or test the vulnerability of a system or network or to breach security or authentication measures without proper authorization; or

**22.1.3.** interfering with service to any user, host, or network.

**22.2.** You shall not misuse this App by intentionally introducing viruses, trojans, worms, logic bombs or other materials that are malicious or technologically harmful (together "Viruses "). You will not attempt to gain unauthorized access to the App, or any server, computer or database connected to the App. You will not attack this App via a denial-of-service attack. Further, you shall not interfere with or circumvent any security feature of the App or any feature that restricts or enforces limitations on use of or access to the App, such as probing or scanning the vulnerability of any system, network or breach.

**22.3.** Should you breach the provisions of this Clause, you will be liable to be prosecuted under the Information Technology Act, 2000 and other applicable statutes. We will immediately report such breach to the relevant law enforcement authorities and will co-operate with such authorities by disclosing your identity to them. In the event of such a breach, your rights to use this App will cease immediately.

**22.4.** We will not be liable for any loss or damage caused by a denial-of-service attack or Viruses that may infect your computer equipment, computer programs, data or other proprietary material due to your use of this App or to your downloading of any material posted on it.

**22.5.** You agree to immediately report to us all incidents involving suspected or actual unauthorized access, disclosure, alteration, loss, damage, or destruction of data.

**22.6.** You shall not interfere with or disrupt (or attempt to interfere with or disrupt) access and enjoyment of the App by other users or any host or network, including, without

limitation, creating or transmitting unwanted electronic communications such as "spam" to other users, overloading, flooding or mail-bombing the App, or scripting the creation of content in such a manner as to interfere with or create an undue burden on the App.

**22.7.** All actions performed by any person using your account and password shall be deemed to have been committed by you and you shall be liable for the same. We reserve the right to suspend/terminate your account at any time if it is found that you have been sharing the password with any unauthorized user.

**22.8.** In order to reduce the risk of unauthorized access, a user is logged out from the account and will have to enter his details and login afresh, after 3 consecutive incorrect login attempts.

## 23. MONITORING

**23.1.** All electronic communications and content presented and/or passed to us, including that presented and/or passed from remote access connections, may be monitored, examined, saved, read, transcribed, stored, or retransmitted in the course of daily operations by any duly authorized employee or agent of ours in the exercise of their duties, or by law enforcement authorities who may be assisting us in investigating possible contravention / non-compliance with applicable law. Electronic communications and content may be examined by automated means. Further, we have the right to reject, at our sole discretion, from the App any electronic communications or content deemed not to be in compliance with the corporate policies and procedures of MWYN.

## 24. GOVERNING LAW AND JURISDICTION

**24.1.** These T&C (and by extension, the Privacy Policy) are governed and construed in accordance with Indian law. By using the App, you hereby irrevocably consent to the exclusive jurisdiction and venue of courts in Bangalore, Karnataka, India, in the event of any disputes arising out of or in relation to your access to and use of the App.

## 25. CONTACT INFORMATION

**25.1.** If you have any questions or concerns regarding the Terms of Service or Privacy Policy, please feel free to contact us at the following email address: hello@freocreditscore.com or at the contact details published on the App.

# Section V: Freo UPI

The Freo mobile application ("App") is owned and operated by MWYN TECH PRIVATE LIMITED ("Freo"), a company incorporated under the provisions of the Companies Act, 2013, and having its registered office at G-405, 4th Floor – Gamma Block, Sigma Soft Tech Park, Varthur Kodi, Whitefield Post, Bangalore – 560 066.

To avail our UPI Services (as defined below), you are required to accept these terms and conditions ("UPI Terms"). By accepting these UPI Terms, you signify that you have read, understood and agree to be bound by these UPI Terms and any other applicable law, whether or not you are a registered user of the App.

Further, you acknowledge and agree that the UPI Terms are in addition to and shall be read along with our Terms & Conditions, available at https://freo.money/terms-and-conditions/ ("T&Cs"). The UPI Terms and T&Cs will collectively govern your utilization of the UPI Services.

Your continued use of the App and/or availing of the UPI Services shall constitute your acceptance to the UPI Terms, as revised from time to time. If you do not agree with these UPI Terms, please do not access and/or use the App or avail such UPI Services.

For the purposes hereof, "we", "our" and "us" shall mean Freo and 'you' and 'your' shall mean you, a user of our App and who meets the eligibility criteria set out below.

# 1.DEFINITIONS:

"**Account**" shall have the meaning set out in the T&Cs.

"**Bank"** means the entity with whom you have opened a Bank Account.

**"Bank Account**" means the current or savings account held with your Bank that you have linked with your UPI ID for the purpose of debiting and/or crediting money through the App and the UPI Services.

"**ICICI Bank**" or "**PSP Bank**" means ICICI Bank Limited, a banking entity that is licensed under the Banking Regulation Act, 1949 and is a member of the UPI ecosystem of NPCI (defined below).

"**NPCI**" means the National Payments Corporation of India, an authorized payment system operator set up with the guidance and support of RBI.

"**Payment Instruction**" means an instruction issued by you while using the UPI Services, to effect transfer of funds to a bank account of a designated beneficiary pursuant to debiting such funds/amounts from your Bank Account.

"**TPAP**" is a Third Party Application Provider (TPAP) is an entity that provides the UPI compliant mobile applications to the end-user customers to facilitate UPI transactions.

"**UPI**" is a payment platform developed by the NPCI that allows you to make instant online payments between two bank accounts.

"**UPI Framework**" means the guidelines, circulars or regulations applicable to UPI, as issued by the RBI, NPCI, PSP Bank and/or any other governmental authority from time to time.

"**UPI PIN**" means a 4 (four) or 6 (six) digit numeric pin/code that you set for authenticating a Payment Instruction, i.e., transaction undertaken using the UPI Services.

"**UPI ID**" or "**VPA**" means the virtual payment address created for you by the PSP Banks at the time of registration on the App. The UPA ID will be linked to your Bank Account and can be used by you to make payments through the App.

The capitalised words used in these UPI Terms but not specifically defined herein, will have the respective meanings assigned to them under the UPI Framework or the T&Cs, as the case may be.

## 2.Eligibility:

2.1 You are eligible to use the UPI Services only if you: (i) are a resident of India; and (ii) are a registered user of the App and have created a valid Account with us.

## 3.UPI Services:

3.1 Freo will provide and facilitate the following functionalities and services to you through the App, whether solely on its own or through ICICI Bank ("**UPI Services**"):

- Facilitate collection of information and documents pertaining to registration for UPI;
- Provide interface on the App to allow you to provide instructions or facilitate transactions such as fund transfer through UPI;
- Facilitate communications between you and the PSP Bank, in connection with transactions through UPI;
- Provide customer support for the UPI Services availed by you, including providing the facility for you to raise complaints, seek grievance redressal, or provide feedback; and/or
- Provide any ancillary or support services in relation to the foregoing.

## 4.Registration:

To use the UPI Services, you will be required to undertake a one-time registration process by following the below steps:

- **Use your mobile number to log-in to the App**: you may enter your mobile number on the App to log-in to the App. At this stage, you will need to accept the T&Cs.
- **Verify your mobile number:** you will have to verify your mobile number using the one-time password (OTP) sent to the mobile number. Once you complete the mobile number verification, we will require you to provide certain permissions to enable the use of UPI Services on your Account. Accordingly, you provide your explicit consent to access your SMS data, mobile phone and SIM details (to activate UPI on your device and match the SIM on the device to your registered mobile number as per the UPI Framework), location information (to prevent fraudulent transactions and provide customised offers), etc.
- **Select SIM for linking to the UPI Services**: In the event you use a device with dual SIM capabilities, you will be required to select the SIM/mobile number that you wish to link to

your Account and the UPI Services. Please note that your SIM/mobile number registered with your Bank Account should be linked to the UPI Services on the App.

- **Select your Bank Account**: Please choose the bank account you wish to link for UPI Services from the list shown on the App (basis the SIM/mobile number linked to Your Account). You agree and acknowledge that the chosen bank account belongs to you, and you have full and lawful authority to operate that bank account in order to make transactions.
- **Set your UPI PIN**: Please select a 4 (four) or 6 (six) digit number as your UPI PIN. This UPI PIN will be used for making UPI transactions. Please do not disclose this UPI PIN to any person. This UPI PIN will remain the same when paying using the UPI Services on the App or using any other UPI application. Setting UPI PIN is not required in case you have set PIN using other TSP applications providing UPI Services.
- **Issuance of VPA/UPI ID**: Once you have linked your Bank Account to use UPI Services, you will be issued a VPA/UPI ID which will be linked to your Bank Account. This UPI ID will be required for undertaking UPI transactions. Your UPI ID will be saved on the App for your subsequent transactions.

## 5.UPI Services for Fund Transfer using Bank account (Self or other), UPI ID/number, Payment Request etc.

**5.1 Bank Transfer:** Make Bank transfers either to your own ban k account or other Bank Account using the UPI Services by following the below steps:

- **For transferring money to own/self Bank Account:**
  - Select you Bank account shown on the app after you click on the Self Transfer button;
  - Select the amount, enter your UPI PIN when prompted and click enter to complete the transaction**.**
- **For Transferring money to Bank Account:**
  - Click on the Bank Transfer icon on the App
  - Enter the details prompted on the App
  - Select the amount, enter your UPI PIN when prompted and click enter to complete the transaction**.**

**5.2 Transfer of Funds using UPI ID/number**

- Click on Pay to UPI ID/number icon on the App
- Enter the details prompted on the App
- Select the amount, enter your UPI PIN when prompted and click enter to complete the transaction

**5.3 Payment Request Transactions**: Make fund transfers / payments using the UPI Services by following the below steps:

- If you receive a payment request, whether as a notification on the App, device or otherwise, you can make payment towards such request using the UPI Services by

visiting the App;
- Review the payment request and either accept or decline the request;
- If you accept and choose to pay, a request summary will be displayed on the App; and
- Select the amount, enter your UPI PIN when prompted and click enter to complete the transaction;

## 6.UPI Services for paying using QR code:

6.1 Make fund transfers / payments using the QR code option by following the below steps:

- Click on the 'Scan QR' option on the App;
- Scan the QR code of the payee / beneficiary to whom you propose to make the payment;
- Verify the name of the payee/ beneficiary and enter the amount you propose to pay; and
- Select the amount and enter your UPI PIN when prompted and click enter to complete the transaction.

## 7.UPI Auto Pay/Recurring Payments:

7.1 You may also choose to enable a recurring e-mandate, i.e., 'Auto Pay' feature on the App, by which you can make payments that are recurring in nature such as mobile/electricity bills, EMI payments etc.

7.2 By using UPI Services for making recurring payments, you agree and acknowledge that, any decline in completing a recurring transaction towards payment of a legally enforceable debt/liability (such as loan repayment or EMI payment) due to insufficient funds in your account, will entitle the payee/beneficiary of such a transaction to initiate appropriate action against you under law, including Section 25 of the Payment and Settlement Systems Act, 2007.

## 8.UPI Transaction Limits:

8.1 Each UPI transaction made by you using the UPI Services cannot exceed such limit as set out in the UPI Framework.

## 9.UPI Lite

9.1 Freo will, subject to the applicable guidelines issued by the RBI and/or NPCI from time to time, enable you to avail 'UPI Lite' on the App. UPI Lite is an 'on-device wallet' for small value transactions enabled by NPCI. All banks may not enable/support UPI Lite. You will be able to enable only one bank account that is linked on your App for UPI Lite ( "**UPI Lite Facility**").

9.2 In order to enable UPI Lite Facility, you will be required to click/tap on the specific section on the App and add funds into the UPI Lite Facility. By clicking/tapping on the specific

section on the App: (i) you will be provided with clear and specific disclaimers and awareness of the UPI Lite functionality and its advantages to you; (ii) Subsequent to (i) above, if you would want to proceed with the UPI Lite Facility, you will be required to provide your consent to enable the UPI Lite Facility. The funds can be added only via your bank account linked to UPI Lite on the App using your UPI PIN. You will be able to track the status of each transaction via UPI Lite Facility on the App. Any amount added to the UPI Lite shall be non-interest bearing. In order to make payment via UPI Lite Facility, you will not be required to enter a UPI PIN. However, there would be limits that would be applicable with respect to the transactions via UPI Lite Facility. The applicable transaction limits shall be as follows:

- Every transaction using UPI Lite Facility shall be limited to a maximum of INR 500 or such other limit as prescribed under the UPI Framework;
- The cumulative value of all transactions using UPI Lite Facility in a day shall be limited to a maximum of INR 4,000 or such other limit as prescribed under the UPI Framework; and
- The maximum balance that can be held in the UPI Lite Facility at one point in time shall be limited to INR 2,000 or such other limit as prescribed under the UPI Framework.

The above stated transaction limits may be modified without any prior notice.

9.3 You hereby understand and agree that UPI Lite transactions shall be offered without a UPI PIN. However, we suggest that the App is accessed by you with app passcode/device authentication (biometric, pattern, etc.) before performing the UPI Lite transaction. Further, you confirm that Freo will not be liable whatsoever for any loss suffered by you while using UPI Lite Facility.

9.4 The grievance redressal mechanism outlined hereinabove, shall also be applicable to the use of the UPI Lite Facility.

9.5 You will have the right to disable the UPI Lite Facility, at any time, by following the steps/procedure prescribed on the App. Once the UPI Lite Facility is disabled, the balance funds will be credited into your linked bank account.

9.6 Except as provided above, all terms provided with respect to UPI Services will be applicable to UPI Lite. In case of a conflict between the terms under this section viz. UPI Lite and the UPI Services (excluding the UPI Lite section), the terms under this section shall prevail. Any disputes with respect to the transaction(s) authorized using UPI Lite will be dealt with as per the process applicable for UPI Services.

## 10.RuPay Credit Card on UPI

10.1 You can link your RuPay credit card on UPI Services as an alternate method to make payments to merchants in a similar manner as you link your savings bank account on App.

10.2 In order to link your RuPay credit card to your Account, you should choose RuPay credit card on the payment methods page and thereafter select the concerned bank with whom you have an existing credit account. Subsequently, you will be required to verify with the

issuing bank, the last 6 digits of your RuPay credit card with the validity details (in MMYY format) in order to create a UPI Pin (MPIN).

10.3 The MPIN will be used to authenticate transactions every time you choose your credit account as a form of payment on the App to pay merchants. Further, once you have linked your RuPay credit card on the App, you can choose the said credit card to make payments to merchants by scanning the UPI QR codes and authenticating the transactions using your MPIN. To clarify, this functionality is only limited to payments to merchants who accept payments via RuPay credit card on UPI. Transactions related to cash withdrawal at merchant, peer to peer Payments, P2PM, card to card payments will not be permitted through this functionality.

## 11.Fee and Charges:

11.1 Freo does not charge its users for creating your Account on the App. Freo may in accordance with applicable law however charge a fee for the UPI Services that Freo may provide to you. Such fee will be determined by Freo and will be communicated to you through the App.

## 12.Your Responsibilities and Obligations:

12.1 you will ensure that you link the correct Bank Account and that you have the full and lawful authority to operate the said Bank Account in order to make UPI transactions.

12.2 you will update your mobile number (in the event of any changes).

12.3 you will keep your UPI PIN and other details related to your Bank Account confidential and you acknowledge that Freo will not be responsible for any unauthorized usage of the UPI Services using your details and any liability arising on account thereof shall be at all time to your account.

12.4 you will be solely responsible for the accuracy, authenticity and completeness of the Payment Instruction made and authorized by you in your usage of the UPI Services on the App (including adding and validating the intended beneficiary, accuracy of beneficiary details and/or details of VPAs etc.). Freo will presume the accuracy, authenticity and completeness of the information entered by you in our provision of the UPI Services on the App. Freo will not independently verify the Payment Instruction. Further, you agree that no Payment Instruction issued by you will be binding on us unless we have accepted the same.

12.5 you agree to be bound by the Payment Instruction.

12.6 you agree to provide information that is true, accurate, current and/or complete. In the event of any default to the foregoing made by you or in the event we have reasonable grounds to suspect that information provided by you is untrue, inaccurate, not current or

incomplete, and/or not in accordance with these UPI Terms, we will have the right to indefinitely suspend or terminate or block access to your use of the UPI Services.

12.7 you agree that neither us nor any other participant in UPI ecosystem will be liable for any delay in the completion of the transfer of funds and/or any loss occurring to you due to any error in the execution of the funds transfer by you. In this regard, you will be responsible to ensure the availability of sufficient funds in your Bank Account in order to avoid transaction declines and charges if any levied by your Bank.

12.8 you authorize debit or credit of your Bank Account as per the Payment Instruction received from you.

12.9 you agree that you will use the UPI Services for lawful purposes only.

12.10 you agree and acknowledge that the UPI Services being offered on the App is in accordance with the UPI Framework, which are subject to change, from time to time.

## 13.NPCI Roles and Responsibilities

13.1 NPCI owns and operates the UPI platform;

13.2 NPCI prescribes rules, regulations, guidelines, and the respective roles, responsibilities and liabilities of the participants, with respect to UPI. This also includes transaction processing and settlement, dispute management and clearing cut-offs for settlement;

13.3 NPCI approves the participation of issuer banks, PSP Banks, TPAPs and Prepaid Payment Instrument issuers (PPIs) in UPI;

13.4 NPCI provides a safe, secure and efficient UPI system and network;

13.5 NPCI provides online transaction routing, processing and settlement services to members participating in UPI;

13.6 NPCI can, either directly or through a third party, conduct audits on UPI participants and call for data, information and records, in relation to their participation in UPI.

13.7 NPCI provides the banks participating in UPI access to a system where they can download reports, raise chargebacks, update the status of UPI transactions etc.

## 14.PSP Bank Roles and Responsibilities

14.1 PSP Bank, either through its own app or through TPAP's app, on-boards and registers the end-user customers on UPI and links their bank accounts to their respective UPI ID;

14.2 PSP Bank is responsible for authentication of the end-user customer at the time of registration of such customer, either through its own app or TPAP's app;

14.3 PSP Bank engages and on-boards the TPAPs to make the TPAP's UPI app available to the end-user customers;

14.4 PSP Bank has to ensure that TPAP and its systems are adequately secure to function on UPI platform;

14.5 PSP Bank is responsible to ensure that UPI app and systems of TPAP are audited to safeguard security and integrity of the data and information of the end-user customer including UPI transaction data as well as UPI app security;

14.6 PSP Bank has to store all the payments data including UPI Transaction Data collected for the purpose of facilitating UPI transactions, only in India;

14.7 PSP Bank is responsible to give all UPI customers an option to choose any bank account from the list of Banks available on UPI platform for linking with the customer's UPI ID;

14.8 PSP Bank is responsible to put in place a grievance redressal mechanism for resolving complaints and disputes raised by the end-user customer.

## 15.Our Responsibilities and Obligations:

15.1 In offering the UPI Services to you, we will ensure that all confidential data/information pertaining to the UPI transactions undertaken by you, details of your Bank Account, and all other sensitive personal information (if any) are kept confidential as per the standards/norms set out in our Privacy Policy;

15.2 We will execute Payment Instruction(s) that are authorized and executed by you except under the following circumstances: -

• Insufficient funds in your Bank Account;

• Incomplete and/or incorrect Payment Instructions issued by you;

• We have reason to believe that the Payment Instruction issued is unlawful/fraudulent; and

• The Payment Instruction issued is unable to be executed under the UPI payment ecosystem.

15.3 We will make available the UPI Services on the App in accordance with UPI Framework;

15.4 We will not be liable/responsible for any defect in the product/goods/services purchased/ availed using UPI Services;

15.5 We will not mediate or resolve any dispute or disagreement between you and the banks, beneficiaries, sellers, or merchants of the products/services purchased/ availed using UPI Services. Any dispute or claim regarding the product/goods/services purchased/availed using UPI Services must be resolved inter-se you and the relevant merchants, or sellers;

15.6 We will endeavour to provide you with a unique UPI ID/VPA. In this regard, it is clarified that our decision to allocate/not allocate a particular UPI ID/VPA to you will be final . We also reserve the right to withdraw, stop, and/or delete your UPI ID/VPA if we have reason to believe that your UPI ID/VPA has been used for any purpose that is unlawful, fraudulent or in violation of UPI Framework.

## 16.Consents

16.1 You expressly agree and acknowledge that along with these UPI Terms, you will also be subject to and bound by PSP Bank's relevant terms and conditions available at https://www.icicibank.com/terms-condition/unified-payment-interface-tnc

16.2 You acknowledge and consent that personal information/data provided during the course of your use of the UPI Services will be treated in accordance with our Privacy Policy available at https://freo.money/privacy-policy/ ("**Privacy Policy**") and UPI Framework.

16.3 By using the UPI Services, you understand and acknowledge that we may use your personal information/data (provided in the course of your use of the UPI Services) for cross selling, making promotions available to you or for providing you offers, value-added services, increasing transactions, better experience, in accordance with the Privacy Policy and the UPI Framework UPI Framework. Further, since the UPI Services are provided to you in association with the PSP Bank, by using UPI Services, you agree and acknowledge that we may share your personal information/data with the PSP Bank for the provision of UPI Services.

## 17.Indemnity & Limitation to Liability:

17.1 In addition to your indemnity set-out under the T&Cs , you, at your expense, will additionally also defend, indemnify and hold harmless, Freo, its affiliates, licensees and its officers, directors, agents and employees from and against all claims, demands, damages, losses, costs and expenses, including attorneys' fees and costs, arising from or relating to: (i) your breach of these UPI Terms; (ii) your violation of UPI Framework (including infringement of intellectual third party); or (iii) your use of the UPI Services.

17.2 IN NO EVENT SHALL WE BE LIABLE FOR ANY DIRECT, INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES OR FOR ANY DAMAGES WHATSOEVER INCLUDING, WITHOUT LIMITATION, DAMAGES FOR LOSS DUE TO USE, DATA OR PROFITS, ARISING OUT OF OR IN ANY WAY CONNECTED WITH THE ACCESS, USE OR PERFORMANCE OF THE APP'S FUNCTIONS AND FEATURES, INCLUDING THE UPI SERVICES OR FOR INTERRUPTIONS, DELAY, ETC., EVEN IF WE WERE ADVISED OF THE POSSIBILITY OF DAMAGES RESULTING FROM THE COST OF GETTING SUBSTITUTE FACILITIES ON THE APP, ANY PRODUCTS, DATA, INFORMATION OR SERVICES PURCHASED OR OBTAINED OR MESSAGES RECEIVED OR TRANSACTIONS ENTERED INTO THROUGH OR FROM THE APP, UNAUTHORIZED ACCESS TO OR ALTERATION OF YOUR TRANSMISSIONS OR DATA STATEMENTS OR CONDUCT OF ANYONE ON THE APP, OR INABILITY TO USE THE APP, THE PROVISION OF OR FAILURE TO PROVIDE THE FUNCTIONS AND FEATURES, WHETHER BASED ON

CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY OR OTHERWISE. THIS CLAUSE SHALL SURVIVE IN PERPETUITY.

## 18.Suspension or Termination of UPI Services:

18.1 We may, in our sole discretion, suspend or terminate your use of the UPI Services, without notice and without liability to you, for any reason (including inactivity or violation of these UPI Terms or any other policies).

## 19.Disclaimer:

19.1 The UPI Services, including all content, software, functions, materials, and information made available or provided in connection with or accessible through the UPI Services, are provided on an 'as is' basis. To the extent permissible under UPI Framework, Freo, its affiliates, subsidiaries or group companies make no representation or warranty of any kind whatsoever for the service or the content, materials, information and functions made accessible through the UPI Services or on the App, including for any breach of security associated with the transmission of sensitive information through the UPI Services. We disclaim without limitation, any warranty of any kind with respect to the UPI Services. We further do not warrant that the UPI Services will be uninterrupted, prompt or error free. We will not be responsible for any service interruptions, including but not limited to system failures or other interruptions that may affect the receipt, processing, acceptance, completion or settlement of UPI transactions undertaken using the UPI Services.

## 20.Grievance Redressal Mechanism:

20.1 You can raise a complaint with respect to a UPI transaction or the UPI Service, on the App. You can select the relevant UPI transaction and raise a complaint in relation to such transaction.

20.2 A complaint could be first raised with Freo (the TPAP) in respect to all UPI related grievances or complaints.

20.3 In case the complaint/grievance remains unresolved, you may escalate the same with the PSP bank, followed by the bank (where you maintain your Bank Account) and thereafter with the NPCI.

20.4 Subsequent to exercising these options, you can approach the banking ombudsman and/or the ombudsman for digital complaints, as the case may be.

20.5 The complaint can be raised for any type of fund transfer transactions, whether to other users or to merchants.

20.6 Freo or the PSP Bank will communicate with you to update the status of the complaint.

20.7 The grievances, if any, could be raised at:

| Type of Entity | Details of Grievance Redressal Mechanism |
|---|---|
| TSP – Freo | hello@freo.money |
| PSP Bank | |
| NPCI | https://www.npci.org.in/what-we-do/upi/dispute-redressal-mechanism |

# Section VI: Freo Insurance and Digital Gold – Third Party Products

The website www.moneytap.com and www.freo.money, Freo and MoneyTap mobile application (jointly "App") are owned and operated by MWYN TECH PRIVATE LIMITED ("MWYN"), a company incorporated under the provisions of the Companies Act, 2013, and having its registered office at G-405, 4th Floor – Gamma Block, Sigma Soft Tech Park, Varthur Kodi, Whitefield Post, Bangalore 560 066. To access or use the App on any compatible device and avail Services you are required to accept these Terms and Conditions ("T&Cs"). By accepting these T&Cs, you signify that you have read, understood and agree to be bound by these T&Cs and any other applicable law, whether or not you are a registered member of the App. As used herein, "User" shall mean anyone who uses or accesses the App on any computer, mobile phone, tablet, console or other device (collectively, "Device") and/or avails the Services (as defined below). Your continued use of the App and/or availing of the Services shall constitute your acceptance to the T&Cs, as revised from time to time. If you do not agree with these T&Cs, please do not access and use the App or avail such Services. For the purposes of these T&Cs, "we", "our" and "us" shall mean MWYN, and/or third-party service providers engaged by MWYN to render certain Services on the App and 'you' and 'your' shall mean a User who meets the eligibility criteria set out below.

## 1.TERMS AND CONDITIONS

1.1 We reserve the right to update or modify these T&Cs at any time. Your access and use of the App following any such change constitutes your agreement to follow and be bound by these T&Cs, as updated or modified. For this reason, we encourage you to review these T&Cs each time you access and use the App and/or avail our Services.

## 2.SERVICES

2.1 MWYN has partnered with Augmont Goldtech Private Limited ("Augmont") and Symbo India Insurance Broking Private Limited ("Symbo") (jointly, "Partners") for enabling Users to access and avail of digital gold and insurance products ("Products") and facilitating transactions in connection therewith ("Services").

2.2 For the avoidance of doubt, it is clarified that MWYN's role and the scope of the Services shall be limited to marketing of the Products on the App and facilitation of transaction between the Users and Partners by hosting the Services on the App. MWYN shall not, at any point in time, undertake or be liable for the actual sale of the Products or bear any liabilities for the Products themselves.

2.3MWYN, if applicable, shall also facilitate the payment of all amounts payable by the User to the Partners, towards the purchase of the Products. All such payments shall be facilitated through the third-party payment gateway integrated into the App. MWYN shall not be responsible for any issues faced by the User in connection with the payment for the Products and the User may approach the third party payment gateway/Partners for resolution of the same.

2.4 MWYN shall provide the following Services to you:

2.4.1 creating and maintaining your account in connection with the Services on the App;

2.4.2 collecting, verifying and recording your KYC (defined below) details; and

2.4.3 facilitating transactions for purchase of the Products by the Users from the Partners through third-party payment gateways integrated on the App.

2.4.4 MWYN reserves the right, without any prior notice to: (i) add new services; (ii) modify existing Services; and/or (iii) remove portions of the Services, as and when it deems fit and at its sole discretion.

## 3.ELIGIBILITY

3.1 You represent and warrant that you are competent and eligible to enter into a legally binding agreement and be bound by these T&Cs. You shall not access and use the App or avail the Services if you are not competent to contract under the applicable laws, rules and regulations.

3.2 For accessing the App and availing the Services, you, as a User, further represent that you are an Indian national having tax residency in India. You also represent and assure that you are not a tax resident of any other country.

3.3 We maintain the right to render Services to only those Users who are – a) competent to enter into legally binding contracts, b) have made the representations as provided above, c) and also qualify under the internal policy(ies) for the same, as determined solely by us from time to time. We shall have the sole right to change, modify, add or remove, in whole or in part, our internal policy(ies), in relation to the provision of the Services at any time without any prior written notice or intimation to the Users. Further, we shall have the right to not entertain any requests in relation to the same, from the Users towards such Services without assigning any reason.

3.4 We shall have the right to not process a transaction through the App, if MWYN in its sole discretion determines that such transaction undertaken by a User is not authorized by such User or that the transaction is not genuine or suspicious.

## 4.REPRESENTATIONS, WARRANTIES AND UNDERTAKING

4.1 The information and data contained in the App do not constitute an offer to buy or sell or solicitation of an offer to buy or sell any Products/Services in any jurisdiction other than India.

4.2 All information provided to MWYN by you is accurate, correct and true.

4.3 You acknowledge and agree that MWYN is entitled to remove any/all the information on the App that is in contravention of these T&Cs.

4.4 You hereby authorize MWYN, if applicable, to make any enquiries with any other finance company/bank/registered credit bureau regarding your credit history with them, in connection with the Services under these T&Cs.

4.5 You agree to not engage in any activities pertaining to the Services that are contrary to any applicable law or regulation or the terms of any agreements you may have with MWYN and/or the Partner.

4.6 You agree not to: (i) create multiple accounts or fake accounts; (ii) create accounts fraudulently; and/or (iii) use the App for any unlawful or immoral purpose.

4.7 You understand that MWYN does not provide any warranties for the Products/Services and shall not be liable for any claims made by you or any third party. In this regard, you undertake to comply with the T&Cs and be solely liable for any transactions undertaken by you with the Partners through the App. You further undertake to indemnify and hold harmless MWYN, its affiliates and their respective directors, officers, employees, agents and representatives against all direct or indirect damages suffered or losses incurred by MWYN arising due to your acts or omissions or against any claim initiated by you or any third party in relation to the Products/Services availed by you or in case of breach of these T&Cs or any warranties by you.

## 5.DISCLAIMERS

5.1 The content and functionality on the App is provided with the fundamental understanding that MWYN is not herein itself engaged in the sale or distribution of the Products or in effectuating payments therefor. MWYN is a mere facilitator of transactions between the Partners and the Users and shall not, in any manner, way or form, be liable for the Products, transactions or payments undertaken through the App.

5.2 The Services are provided by MWYN is on an “as is” basis, without any representations or warranties of any kind, express or implied, including without limitation, the warranties of the

merchantability, fitness for a particular purpose, reliability, availability, timeliness, security or accuracy of the payments, data, information, schemes, or databases provided by way of the App, for any purpose whatsoever. No oral or written information or advice given by MWYN through the App, or its authorized representatives shall create a warranty nor in any way increase the scope of this warranty. The User acknowledges that use of the Services and purchase of the Products is at the User's sole risk.

## 6.INTELLECTUAL PROPERTY POLICY

6.1 All of the content on the App, including, without limitation, all of the page headers, images, illustrations, graphics, audio clips, video clips or text, reports generated, trademarks, tradenames ("App Content"), constitute our and our licensors' intellectual property. Copyright laws in all applicable jurisdictions protect the App and the App Content.

6.2 You may access the App, avail of the features and facilities and utilize the App Content for your personal or internal requirements only. You are not entitled to duplicate, distribute, create derivative works of, display, or commercially exploit the App Content, features or facilities, directly or indirectly, without our prior written permission. If you would like to request permission to commercially exploit any particular App Content, you could contact us in the manner provided for herein.

6.3 MWYN and its licensors, if any, are the sole owners of the underlying software and source code associated with the App and all the trademarks, copyright and any other intellectual property rights of any nature in the App.

## 7.KYC REQUIREMENTS

7.1 Before placing an order on the App, you are required to provide certain know your customer ("KYC") documentation including but not limited to your Proof of Aadhar, PAN and bank account details, and any other information as may be required, in such form and manner as requested by us, in accordance with applicable law. We may request this information from you either at the time of registration on the App or at a later stage, as and when the need arises. You further agree to cooperate with MWYN in undertaking the verification of the KYC and undertake such actions as instructed by MWYN from time to time.

7.2 It is hereby clarified that we will only collect and undertake the KYC process on behalf of the Partners and provide them with the documents submitted by you. Please note that notwithstanding a successful authentication pursuant to completion of KYC process, the provision of Products/services shall be at the sole discretion of the Partners.

## 8.COLLECTION OF INFORMATION

8.1 In the course of availing Services, you authorize MWYN, directly or through third parties, to make any inquiries we consider necessary to validate your identity and to collect

information about you in accordance with these T&Cs and with our Privacy Policy. This may include asking you for further information that will allow us to reasonably identify you, requiring you to take steps to confirm ownership of your email address or financial instruments, or verifying your information against third party databases or through other sources. You may also be required to provide documents to help us validate your identity. In the event MWYN is unable to obtain or verify your information, MWYN reserves the right to close, suspend, or limit access to your account and/or the Services rendered. By availing the Services, you also consent to enable MWYN to validate your identity and to collect information about you in accordance with these T&Cs and our Privacy Policy.

8.2 You also provide your consent to MWYN to use and share the information provided by you in connection with the Services. You also agree and consent to MWYN to assess the information, based on your usage of the App.

8.3 You agree and understand that we will collect, receive and process your personal information in accordance with our Privacy Policy. By accepting the T&Cs, you hereby agree and accept our Privacy Policy which may be updated by us from time to time.

8.4 You agree to provide only true, accurate, current and complete information about yourself, and you agree not to misrepresent your identity or your account information in the course of availing Services. You further agree to keep your account information up to date and accurate.

8.5 The responsibility of providing correct information, details, including the contact information, amount, the bank account details etc., lies solely with you. MWYN shall not be responsible to verify the accuracy of the information/ details provided by you. In the event of any changes in the details or information provided by you initially, you must inform MWYN of such changes within a reasonable period of time. If any incorrect bank account number is provided by you, any amount may be deposited /credited to the wrong bank account and there is no guarantee of recovery of the same. MWYN will not be responsible for any loss or damage that may be sustained by you on account of such error on your part.

## 9.YOUR RIGHTS AND PREFERENCES AS A DATA SUBJECT IN INDIA

9.1 These T&C are intended for Indian residents and govern your rights as per applicable law within the territory of India. However, in the event you fall under a jurisdiction outside the purview of Indian law, we will not be liable for any claim, action and/or right initiated/exercised by you as per the extant laws of that jurisdiction. Therefore, we request you to kindly use the App accordingly.

## 10.SYSTEM REQUIREMENTS

10.1 In order to use the App, you are required to have a compatible Device with the following minimum specifications: Android Operating System version 4.1 (SDK level 16) or higher or iOS 9.0 or higher.

## 11.USER GUIDELINES

11.1 In consideration of MWYN granting you the rights hereunder, you hereby agree not to use the App for any purpose that is unlawful under any applicable laws and/or in violation of the terms of these T&C and our Privacy Policy. You shall not use the App in any manner that could damage, disable, overburden, or impair our server, or any network(s) connected to any server, or interfere with any other party's use and enjoyment of the App. You shall not attempt to gain unauthorized access to any functions and features, other user accounts, computer systems or networks connected to any server, in any manner, including, through hacking, password mining or any other means. You shall not obtain or attempt to obtain any materials or information through any means which is not intentionally made available through the App.

11.2 The App is made available to you for your own personal and non-commercial use alone. You shall not allow third parties to: (i) make and/or distribute copies of the App or any deliverable generated by the App; (ii) attempt to copy, reproduce, alter, modify and/or reverse engineer the App; and/or (iii) create derivative works of the App.

11.3 You accept that any and all operations emanating from your Device shall be assumed to have been initiated by you.

11.4 You shall not copy, reproduce, distribute, or create derivative works of our content that is available on the App. Also, you shall not reverse engineer or reverse compile our technology that is available on the App, including, without limitation, such Java Applet, as may be associated with the App from time to time.

11.5 You shall request MWYN, to block the account and change the passcode immediately for the account, if your Device has been lost or stolen.

11.6 You are responsible for any and all activities that occur in your account. You agree to notify MWYN immediately of any unauthorized use of the account or any other breach of security. MWYN shall not be liable for any loss to you or your organization owing to negligent actions or a failure on your part to inform MWYN, within a reasonable time, about loss or theft of your Device and/or any unauthorized access in your account, either with or without your knowledge.

11.7 You shall be liable for losses incurred by MWYN or any other party due to a third party's use of the account. You shall not use any other person's account at any time, without the permission of the account holder and MWYN.

11.8 MWYN shall make all reasonable efforts to ensure that your information is kept confidential. However, MWYN shall not be responsible for any disclosure or leakage of

confidential information and/or loss or damage of the Device due to theft, negligence or failure on your part to practice safe computing.

11.9 You shall ensure that while using the functions and features, all prevailing and applicable laws, rules and regulations, shall at all times, be strictly complied with by you and MWYN shall not be liable in any manner whatsoever for default of any nature, by you, regarding the same.

11.10 You understand and acknowledge that upon using the App, you authorize us to access third party sites designated by you, on your behalf, to retrieve such information requested by you, and to register for accounts requested by you. For all purposes hereof, you hereby authorize us with the full power of substitution and re-substitution, for you and in your name, place and stead, in any and all capacities, to access third party internet sites, servers or documents, retrieve information, and use your information, all as described above, with the full power and authority to do and perform each and every act and thing requisite and necessary to be done in connection with services and facilities available on the App, as fully to all intents and purposes as you might or could do in person. YOU ACKNOWLEDGE AND AGREE THAT WHEN WE ACCESS AND RETRIEVE INFORMATION FROM THIRD PARTY SITES, WE ARE ACTING AS YOUR AGENT, AND NOT THE AGENT OR ON BEHALF OF THE THIRD PARTY. You agree that such third parties shall be entitled to rely on the foregoing authorization, agency granted by you.

11.11 You hereby acknowledge and agree that MWYN shall not be liable for failure of any transaction undertaken for any reason whatsoever including but not limited to deficiency of Service and/or Products delivered as well as technical errors. You further acknowledge that MWYN shall not be responsible in any manner whatsoever, for any loss incurred by you for a failed/ incomplete transaction undertaken by you using the Services.

11.12 You hereby agree and express your voluntary, unequivocal and informed consent to your personal data or financial information (including such data as may be designated as 'personally identifiable data' under the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011 or other applicable law), being processed, disclosed and/or transferred by MWYN to third-party entities.

## 12.INDEMNIFICATION

12.1 You agree to protect, defend and indemnify us and hold us and our representatives harmless from and against any and all claims, damages, costs and expenses, including attorneys' fees, arising from or related to your access and use of the App in violation of these T&C and/or your infringement, or infringement by any other user of your account, of any intellectual property or other right of anyone.

12.2 The terms of this provision will survive any termination or cancellation of these T&C or your use of the App.

## 13.LIMITATION OF LIABILITY

13.1 IN NO EVENT SHALL WE BE LIABLE FOR ANY DIRECT, INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES OR FOR ANY DAMAGES WHATSOEVER INCLUDING, WITHOUT LIMITATION, DAMAGES FOR LOSS OF USE, DATA OR PROFITS, ARISING OUT OF OR IN ANY WAY CONNECTED WITH THE ACCESS, USE OR PERFORMANCE OF THIS APP'S FUNCTIONS AND FEATURES OR FOR INTERRUPTIONS, DELAY, ETC., EVEN IF WE WERE ADVISED OF THE POSSIBILITY OF DAMAGES RESULTING FROM THE COST OF GETTING SUBSTITUTE FACILITIES ON THE APP, ANY PRODUCTS, DATA, INFORMATION OR SERVICES PURCHASED OR OBTAINED OR MESSAGES RECEIVED OR TRANSACTIONS (INCLUDING PAYMENT TRANSACTIONS AND PROCESSING) ENTERED INTO THROUGH OR FROM THE APP, UNAUTHORIZED ACCESS TO OR ALTERATION OF YOUR TRANSMISSIONS OR DATA STATEMENTS OR CONDUCT OF ANYONE ON THE APP, OR INABILITY TO USE THE APP, THE PROVISION OF OR FAILURE TO PROVIDE THE FUNCTIONS AND FEATURES, WHETHER BASED ON CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY OR OTHERWISE. THIS CLAUSE SHALL SURVIVE IN PERPETUITY.

## 14.SEVERABILITY

14.1 If any provision of these T&C is held to be illegal, invalid or unenforceable under any present or future applicable laws: (a) such provision will be replaced with another, which is not prohibited or unenforceable and has, as far as possible, the same legal and commercial effect as that which it replaces; and (b) the remaining provisions of the T&C will remain in full force and effect and will not be affected by the illegal, invalid, or unenforceable provision or by its severance herefrom.

## 15.TERM AND TERMINATION

15.1 These T&Cs and the right to use granted hereunder shall take effect on the date you create an account with the App, and shall continue in effect until termination this Agreement in accordance with this section.

15.2 MWYN may terminate the use of the App at any time after giving notice of the termination to you.

15.3 Upon termination, the rights and license granted to you herein shall terminate and you must cease all use of the App.

## 16.WAIVER

16.1 Any failure on the part of MWYN to require performance of any provision of these T&C shall not affect its right to full performance thereof at any time thereafter, and any waiver by MWYN of a breach of any provision hereof shall not constitute a waiver of a similar breach in the future or of any other breach.

# 17.ASSIGNMENT

17.1 You shall not assign or transfer any rights, obligations, or privileges that you have under these T&C, without the prior written consent of MWYN. Subject to the foregoing, these T&C will be binding on the successors and permitted assignees of MWYN. Any assignment or transfer in violation of this clause will be deemed null and void.

# 18.INDEPENDENCE FROM PLATFORMS

18.1 The App is independent of any platform on which it is located. The App is not associated, affiliated, sponsored, endorsed or in any way linked to any platform operator, including, without limitation, Apple, Google, Android or RIM Blackberry (each being an "Operator").

18.2 Your download, installation, access to or use of the App is also bound by the terms and conditions of the Operator.

18.3 You and MWYN acknowledge that these T&C are concluded only between you and MWYN, and not with an Operator, and MWYN, not those Operators, are solely responsible for the App and the content thereof to the extent specified in these T&C.

18.4 MWYN is solely responsible for providing any maintenance and support services with respect to the App as required under applicable law. You and MWYN acknowledge that an Operator has no obligation whatsoever to furnish any maintenance and support services with respect to the App.

18.5 You and MWYN acknowledge that MWYN, not the relevant Operator, is responsible for addressing any User claims or any third-party claim relating to the App or your possession and/or use of the App, including, but not limited to: (i) any claim that the App fails to conform to any applicable legal or regulatory requirement; and (ii) claims arising under consumer protection or similar legislation.

18.6 You and MWYN agree that, in the event of any third-party claim that the App or your possession and use of the App infringes that third party's intellectual property rights, MWYN and not the relevant Operator, will be solely responsible for the investigation, defense, settlement and discharge of any such intellectual property infringement claim; provided such infringement was caused by MWYN.

18.7 You must comply with any applicable third-party terms of agreement when using the App (e.g. you must ensure that your use of the App is not in violation of your Device agreement or any wireless data service agreement).

18.8 You and MWYN agree that the relevant Operator, and that Operator's subsidiaries, are third party beneficiaries of these T&C, and that, upon your acceptance of these T&C, that Operator will have the right (and will be deemed to have accepted the right) to enforce the terms of these T&C against you as a third-party beneficiary thereof.

## 19.UPDATES

19.1 MWYN reserves the right to update the App, in order to, inter alia, increase efficiency, optimize user interface, and add new facilities from time to time. Update packages will be sent to you on your Device for download and installation.

19.2 You hereby agree to install the updates from time to time and acknowledge that MWYN will only be able to provide account support for the App if you ensure installation of all updates upon receiving notifications thereof when using the App.

## 20.VALIDITY OF T&C

20.1 These T&C shall apply when you complete the authentication process and create an account and shall remain valid and binding on you for so long as you maintain the account.

## 21.SECURITY

21.1 You are prohibited from violating or attempting to violate the security of the App, including, without limitation:

21.1.1accessing data not intended for you or logging into an account which you are not authorized to access;

21.1.2 attempting to probe, scan or test the vulnerability of a system or network or to breach security or authentication measures without proper authorization; or

21.1.3 interfering with service to any user, host, or network.

21.2 You shall not misuse this App by intentionally introducing viruses, trojans, worms, logic bombs or other materials that are malicious or technologically harmful (together "Viruses"). You will not attempt to gain unauthorized access to the App, or any server, computer or database connected to the App. You will not attack this App via a denial-of-service attack. Further, you shall not interfere with or circumvent any security feature of the App or any feature that restricts or enforces limitations on use of or access to the App, such as probing or scanning the vulnerability of any system, network or breach.

21.3 Should you breach the provisions of this Clause, you will be liable to be prosecuted under the Information Technology Act, 2000 and other applicable statutes. We will immediately report such breach to the relevant law enforcement authorities and will co-operate with such authorities by disclosing your identity to them. In the event of such a breach, your rights to use this App will cease immediately.

21.4 We will not be liable for any loss or damage caused by a denial-of-service attack or Viruses that may infect your computer equipment, computer programs, data or other

proprietary material due to your use of this App or to your downloading of any material posted on it.

21.5 You agree to immediately report to us all incidents involving suspected or actual unauthorized access, disclosure, alteration, loss, damage, or destruction of data.

21.6 You shall not interfere with or disrupt (or attempt to interfere with or disrupt) access and enjoyment of the App by other users or any host or network, including, without limitation, creating or transmitting unwanted electronic communications such as “spam” to other users, overloading, flooding or mail-bombing the App, or scripting the creation of content in such a manner as to interfere with or create an undue burden on the App.

21.7 All actions performed by any person using your account and password shall be deemed to have been committed by you and you shall be liable for the same. We reserve the right to suspend/terminate your account at any time if it is found that you have been sharing the password with any unauthorized user.

21.8 In order to reduce the risk of unauthorized access, a user is logged out from the account and will have to enter his details and login afresh, after 3 consecutive incorrect login attempts.

## 22.MONITORING

22.1 All electronic communications and content presented and/or passed to us, including that presented and/or passed from remote access connections, may be monitored, examined, saved, read, transcribed, stored, or retransmitted in the course of daily operations by any duly authorized employee or agent of ours in the exercise of their duties, or by law enforcement authorities who may be assisting us in investigating possible contravention / non-compliance with applicable law. Electronic communications and content may be examined by automated means. Further, we have the right to reject, at our sole discretion, from the App, any electronic communications or content deemed not to be in compliance with the corporate policies and procedures of MWYN.

## 23.GOVERNING LAW AND JURISDICTION

23.1 These T&Cs (and by extension, the Privacy Policy) are governed and construed in accordance with Indian law. By using the App, you hereby irrevocably consent to the exclusive jurisdiction and venue of courts in Bangalore, Karnataka, India, in the event of any disputes arising out of or in relation to your access to and use of the App.

## 24.CONTACT INFORMATION

24.1 If you have any questions or concerns regarding the Terms of Service or Privacy Policy, please feel free to contact us at the following email address: hello@freo.money or at the contact details published on the App.

24.2 In the event of an error in the transaction or ancillary issues, please contact our customer support team at hello@freo.money

24.4 In the event of any issues arising in relation to the Products, please contact (i) for digital gold related queries support@augmont.com; and (ii) for insurance product related queries support@symboinsurance.com

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Car Loan EMI Calculator

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